Westchester Surplus Lines Insurance Company

INSURANCE COMPANY

11575 Great Oaks Way Suite 200
Alpharetta, GA 30022

NOTICE

POLICY NO. G48733396 002

NAME OF INSURED: ENGEO Inc

ADDRESS: 2633 Camino Ramon Suite 250 San Ramon, CA 94583

We are pleased to enclose your policy for this account.

Please be advised that by binding this risk with the above referenced Surplus Lines Insurance Company, you agree that as the Surplus Lines Broker responsible for the placement of this insurance policy, it is your obligation to comply with all States Surplus Lines Laws including completion of any declarations/affidavits that must be filed as well as payment of any and all Surplus Lines taxes that must be remitted to the State(s). We will look to you for indemnification if controlling Surplus Lines Laws are violated by you as the Surplus Lines broker responsible for the placement.

You further confirm that any applicable state requirement concerning a diligent search for coverage by admitted carriers has been fulfilled in accordance with state law.

Thank you for this placement and your regulatory compliance.

Date:09/18/2025

CHUBB

- [ ] **Illinois Union Insurance Company**
- [x] **Westchester Surplus Lines Insurance Company**
- [ ]

Insured:

ENGEO Inc
2633 Camino Ramon
Suite 250
San Ramon, CA 94583

Attached To Policy No.: G48733396 002

Effective Date: 09/01/2025

CALIFORNIA SURPLUS LINES NOTIFICATION

IMPORTANT NOTICE:

1. The insurance policy that you (have purchased) (are applying to purchase) is being issued by an insurer that is not licensed by the State of California. These companies are called "nonadmitted" or "surplus line" insurers.

2. The insurer is not subject to the financial solvency regulation and enforcement that apply to California licensed insurers.

3. The insurer does not participate in any of the insurance guarantee funds created by California law. Therefore, these funds will not pay your claims or protect your assets if the insurer becomes insolvent and is unable to make payments as promised.

4. The insurer should be licensed either as a foreign insurer in another state in the United States or as a non-United States (alien) insurer. You should ask questions of your insurance agent, broker, or "surplus line" broker or contact the California Department of Insurance at the toll-free number 1-800-927-4357 or internet website www.insurance.ca.gov. Ask whether or not the insurer is licensed as a foreign or non-United States (alien) insurer and for additional information about the insurer. You may also visit the NAIC's internet website at www.naic.org. The NAIC–the National Association of Insurance Commissioners–is the regulatory support organization created and governed by the chief insurance regulators in the United States.

5. Foreign insurers should be licensed by a state in the United States and you may contact that state's department

of insurance to obtain more information about that insurer. You can find a link to each state from this NAIC internet website: https://naic.org/state_web_map.htm.

6. For non-United States (alien) insurers, the insurer should be licensed by a country outside of the United States and should be on the NAIC's International Insurers Department (IID) listing of approved nonadmitted non-United States insurers. Ask your agent, broker, or "surplus line" broker to obtain more information about that insurer.

7. California maintains a "List of Approved Surplus Line Insurers (LASLI)." Ask your agent or broker if the insurer is on that list, or view that list at the internet website of the California Department of Insurance: www.insurance.ca.gov/01-consumers/120-company/07-lasli/lasli.cfm.

8. If you, as the applicant, required that the insurance policy you have purchased be effective immediately, either because existing coverage was going to lapse within two business days or because you were required to have coverage within two business days, and you did not receive this disclosure form and a request for your signature until after coverage became effective, you have the right to cancel this policy within five days of receiving this disclosure. If you cancel coverage, the premium will be prorated and any broker's fee charged for this insurance will be returned to you.

NOTHING HEREIN CONTAINED SHALL BE HELD TO VARY, ALTER, WAIVE OR EXTEND ANY OF THE TERMS, CONDITIONS, OR LIMITATIONS OF THE POLICY TO WHICH THIS NOTICE IS ATTACHED OTHER THAN AS STATED ABOVE.

Applicant Signature ________________________ Date ____________

Insurer: Westchester Surplus Lines Insurance Company

Home Office Address:	Administrative Address:
11575 Great Oaks Way Suite 200	11575 Great Oaks Way Suite 200
Alpharetta, GA 30022	Philadelphia, PA 19106

EPIC PRIVATE COMPANY INSURANCE POLICY

NOTICE: PLEASE READ THIS POLICY CAREFULLY. SOME OF THE PROVISIONS CONTAINED IN THIS POLICY RESTRICT COVERAGE, SPECIFY WHAT IS AND WHAT IS NOT COVERED AND DESIGNATE RIGHTS AND DUTIES, DEFENSE AND CLAIMS EXPENSE IS SUBJECT TO AND WILL SERVE TO ERODE THE LIMITS OF INSURANCE AND ANY APPLICABLE RETENTION.

NOTICE: THIS POLICY PROVIDES CLAIMS MADE COVERAGE. EXCEPT AS OTHERWISE PROVIDED, SUCH COVERAGE APPLIES ONLY TO CLAIMS FIRST MADE AGAINST THE INSUREDS DURING THE POLICY PERIOD, OR, IF ELECTED, THE EXTENDED REPORTING PERIOD, AND REPORTED TO THE INSURER, IN WRITING, PURSUANT TO THE TERMS OF THE POLICY. THE LIMIT OF LIABILITY SHALL BE REDUCED, AND MAY BE EXHAUSTED, BY DEFENSE COSTS PAYMENTS. IF THE LIMIT OF LIABILITY IS EXHAUSTED, THE INSURER SHALL HAVE NO FURTHER LIABILITY, INCLUDING LIABILITY FOR DEFENSE COSTS.

NOTICE: TERMS THAT APPEAR IN BOLD FACE TYPE HAVE SPECIAL MEANING. PLEASE REFER TO SECTION II, DEFINITIONS, OF THE POLICY. THE DEFINITION OF CLAIM IS CRITICAL TO COVERAGE AFFORDED.

DECLARATIONS

Policy No.: G48733396 002

Item 1. Named Insured & Address:

ENGEO Inc
2633 Camino Ramon
Suite 250
San Ramon, CA, 94583

Item 2. Policy Period:

From: 09/01/2025
To: 09/01/2026
12:01 a.m. local time at the address stated in Item 1

Item 3. Policy Premium: $35,742

Premium attributable to Terrorism Risk Insurance:		$0
Included In Policy Premium	☒	
In Addition To Policy Premium	☐	

Item 4. Extended Reporting Period Options:

Additional Period:	Additional Premium:
1 year	100%
3 years	125%
6 years	150%

Item 5. Notices to Insurer:

Claims or Potential Claims:

(A) All notices to the Company under this Policy of any **Matter** or circumstance shall be given in writing to one of the following addresses:

(1) ChubbClaimsFirstNotice@Chubb.com

(2) Attn: Chubb Claims Department
Chubb
P.O. Box 5122
Scranton, PA 18505

All Other Notices:

(B) All other notices to the Company under this Policy shall be given in writing to one of the following addresses:

(1) NA.FinancialLines@chubb.com

(2) Attn: Chubb Underwriting Department
Chubb
202B Hall's Mill Road
Whitehouse Station, NJ 08889

Item 6. Coverage Elections:

Only those options and insuring agreements designated with an X are included in this Policy.

X **Aggregate Limit of Liability:**	$ 3,000,000		
Insuring Agreement	**Limit of Liability**	**Retention Each Claim**	**Pending and Prior Litigation Date**
X **A. Management and Company Liability**	$ 3,000,000		
(1) Management Liability		**$** 0	04/01/2001
(2) Company Reimbursement		**$** 50,000	04/01/2001
(3) Company Liability		**$** 50,000	04/01/2001
Company Investigation Costs Sublimit of Liability: $ 1,000,000			
Derivative Investigation Costs Sublimit of Liability: $ 500,000			
X **B. Employment Practices Liability**	$ 3,000,000		
(1) Employment Practices Liability		**$** 125,000	04/01/2001
(2) Employment Practices Liability – Third Party Sublimit Of Liability: $ 3,000,000		$ 125,000	04/01/2001
(3) Wage and Hour Defense Costs Sublimit of Liability: $ 125,000		$ 125,000	04/01/2001
X **C. Fiduciary Liability**	$ 3,000,000		
(1) Fiduciary Liability		**$** 0	04/01/2001
(2) Settlement Programs Sublimit of Liability: $ 500,000			

Item 7. Endorsements:

WSG-084 (05/11)	Surplus Lines Broker Notice
SL-17888 (01/20)	California Surplus Lines Notification
LD-5S23l (10/24)	Signature Endorsement
PF-295399 (02/20)	Privacy And Data Breach Exclusion
PF-297109 (03/20)	Separate Retention for ESOP Claims
PF-297128 (03/20)	Biometric Information Privacy Claim Exclusion
PF-298590 (03/20)	Company Investigation Costs Endorsement
MS-392495	Amend Definition of Loss - HIPAA Penalties
All-20887a (03/16)	Chubb Producer Compensation Practices & Policies
All-21101 (11-06)	Trade or Economic Sanctions Endorsement
EPLA-P (04/25)	EPL Assist
IL P 001 01 04	U.S. Treasury Departments' Office of Foreign Assets Control ("OFAC") Advisory Notice to Policyholders
SL-34255b (04/23)	Service of Suit Endorsement
PF-45354 (01/15)	Cap On Losses From Certified Acts Of Terrorism
TR-45231a (08/20)	Policyholder Disclosure - Notice of Terrorism Insurance Coverage

Date: ______________________________ ______________________________

Authorized Representative

EPIC PRIVATE COMPANY INSURANCE POLICY

In consideration of the payment of the premium, and in reliance on the **Application** which forms a part hereof, the **Insureds** and the Insurer specified in the Declarations agree as follows:

I. INSURING AGREEMENTS

If elected in Item 6 of the Declarations, this Policy includes the following Insuring Agreements:

Insuring Agreement A: Management and Company Liability
(1): Management Liability
The Insurer shall pay on behalf of each **Insured Person Loss** arising from a **Claim** first made against such **Insured Person**, individually or otherwise, during the **Policy Period** or, if applicable, the **Extended Reporting Period**, and reported to the Insurer pursuant to the terms of this Policy, for a **Wrongful Act**, except when and to the extent that the **Company** has actually indemnified such **Insured Person**.

(2): Company Reimbursement
The Insurer shall pay on behalf of the **Company Loss** arising from a **Claim** first made against an **Insured Person** during the **Policy Period** or, if applicable, the **Extended Reporting Period**, and reported to the Insurer pursuant to the terms of this Policy, for a **Wrongful Act**, but only when and to the extent that the **Company** has indemnified such **Insured Person** for such **Loss**.

(3): Company Liability
The Insurer shall pay on behalf of the **Company Loss** arising from a **Claim** first made against the **Company** during the **Policy Period** or, if applicable, the **Extended Reporting Period**, and reported to the Insurer pursuant to the terms of this Policy, for a **Wrongful Act**.

Insuring Agreement B: Employment Practices Liability
(1): Employment Practices Liability
The Insurer shall pay on behalf of an **Insured Loss** arising from a **Claim** first made against the **Insureds** during the **Policy Period** or, if applicable, the **Extended Reporting Period**, and reported to the Insurer pursuant to the terms of this Policy, for an **Employment Practices Wrongful Act**.

(2): Third Party Liability
The Insurer shall pay on behalf of an **Insured Loss** arising from a **Claim** by or on behalf of a **Third Party** first made against the **Insureds** during the **Policy Period** or, if applicable, the **Extended Reporting Period**, and reported to the Insurer pursuant to the terms of this Policy, for a **Third Party Wrongful Act**.

Insuring Agreement C: Fiduciary Liability
(1): Fiduciary Liability
The Insurer shall pay on behalf of an **Insured Loss** arising from a **Claim** first made against the **Insureds** during the **Policy Period** or, if applicable, the **Extended Reporting Period**, and reported to the Insurer pursuant to the terms of this Policy, for a **Fiduciary Wrongful Act.**

(2): Settlement Programs
The Insurer shall pay on behalf of the **Insureds** a **Voluntary Settlement** and **Defense Costs** arising from a **Settlement Program Notice** first given to the Insurer during the **Policy Period** or, if applicable, the **Extended Reporting Period**, provided that such **Voluntary Settlement** and **Defense Costs** are incurred after written notice of the **Insured's** intent to enter into such **Settlement Program** is first given to the Insurer**.** This Insuring Agreement C(2) shall be subject to a sublimit of liability of $250,000. Such sublimit shall be the maximum aggregate amount that the Insurer shall pay under Insuring Agreement C(2) and shall be part of, and not in addition to, the Limit of Liability applicable to Insuring Agreement C.

II. DEFINITIONS

(a) “**Antitrust Claim**” means any **Claim** for any actual or alleged price fixing; restraint of trade; monopolization; violation of the Interstate Act of 1867, the Sherman Antitrust Act of 1890, the Clayton Act of 1914, the Federal Trade Commission Act of 1914, the Robinson-Patman Act of 1938, the Cellar Kefauver Act of 1950 or any other similar law involving anti-trust, monopoly, price fixing, price discrimination, predatory pricing or restraint of trade activities and any amendments thereto or any rules or regulations promulgated thereunder or in connection with such statutes; or any similar provision of any federal, state, or local statutory law or common law anywhere in the world.

(b) “**Application**” means the written application and any materials submitted therewith by the **Insured** in connection with the underwriting of this Policy, all of which are deemed incorporated into and constitute a part of this Policy.

(c) “**Claim**” means a:

(1) written demand for monetary or non-monetary (including injunctive) relief against an **Insured** commenced by the **Insured's** receipt of such demand;

(2) written request to waive or toll any statute of limitations commenced by the receipt of such written request by an **Insured**;

(3) civil, administrative, regulatory, arbitration, or mediation or other alternative dispute resolution proceeding commenced by an **Insured’s** receipt of a summons, complaint, demand for arbitration, request for injunction, notice of charges, order to show cause, or other similar pleading, or any foreign equivalent of the foregoing;

(4) criminal proceeding commenced by the return of an indictment or service on an **Insured** of an information, criminal complaint or similar charging document or any foreign equivalent of the foregoing; or

(5) civil, criminal, administrative or regulatory investigation of an **Insured Person** by a federal, state, local, foreign or offshore government or regulatory authority or agency commenced by an **Insured’s** receipt of a subpoena, Wells Notice, “target” letter (within the meaning of Title 9, Section 11.151 of the United States Attorneys’ Manual), order of investigation, civil investigative demand, search warrant or other similar request or document identifying such **Insured Person** whom a proceeding described in (3) or (4) above may be brought; provided that the Insurer shall take into reasonable consideration all extrinsic evidence presented by the **Insured** when determining whether such written request identifies an **Insured Person** as a target of such investigation.

(6) Regarding Insuring Agreements A(1) and A(2), **Inquiry** received by an **Insured Person** commenced by such **Insured Person's** receipt of such **Inquiry** (regardless of whether the law enforcement or governmental investigative authority conducting such **Inquiry** has identified the **Wrongful Act** being investigated)

(7) Regarding Insuring Agreement A, an **Antitrust Claim**

(8) Subject to Section IX, Limit Of Liability And Retention, subsection (b), and Item 6 of the Declarations, a **Shareholder Derivative Demand** commenced by the **Company's** receipt of such **Shareholder Derivative Demand**;

(9) Regarding Insuring Agreement C(2), a **Settlement Program Notice**; or

(10) written request or other written statement seeking **Extradition** of an **Insured Person** commenced by the **Insured Person's** receipt of such written request or statement,

including any appeal therefrom.

A **Claim** does not include any labor or grievance arbitration or other proceeding which is subject to a collective bargaining agreement.

All Claims based upon **Interrelated Wrongful Acts** shall be deemed a single **Claim** made at the earliest time that any of such **Claims** was first made against an **Insured** or written notice of any **Interrelated Wrongful Act** was furnished under this Policy or any prior similar management, employment practices or fiduciary liability policy. Provided, however, if any notice of claim or notice of circumstances is given by the **Insureds** under any prior similar management, employment practices or fiduciary liability policy that the prior insurer refused to accept for coverage solely because the matter in such notice did not .meet the definition of "claim" or the specificity requirements for a notice of circumstances under the prior policy, then such notice shall not be deemed a **Claim** first made in the prior policy period.

(d) "**Company**" means the **Named Insured** and any **Subsidiary**, any foundation, political action committee, charitable trust controlled or sponsored by the **Named Insured** or any **Subsidiary** and, in the event any bankruptcy proceedings shall be instituted by or against the **Named Insured** or any **Subsidiary**, the resulting debtor-in-possession (or equivalent status outside of the United States), if any.

(e) "**Defense Costs**" means all reasonable costs, charges, fees and expenses incurred by an **Insured** in the investigation, defense, settlement or appeal of any **Claim** and the premium for any appeal bond, attachment bond or similar bond, provided that the Insurer has no obligation to apply for or to furnish any such bond; provided, however, **Defense Costs** shall not include salaries, or benefits of any **Insured**.

Additionally, to the extent that an **Insured** gives notice to the Insurer in accordance with Section XII, Notice, subsection (b), of this Policy, of specific circumstances, complies with all other applicable terms of the Policy, and a **Claim** (other than an **Inquiry**) subsequently arises from such specific circumstances, **Defense Costs** shall also mean all reasonable legal fees incurred by an **Insured** in the investigation and/or defense of any such specific circumstances that are incurred (i) on or after the date such notice is received by the Insurer, and (ii) prior to the time such specific circumstances rises to the level of a **Claim**. Provided, the maximum aggregate amount the Insurer shall pay for any such **Defense Costs** relating to a single Claim shall be $100,000.

Regarding any **Claim** that is an **Inquiry**, "**Defense Costs**" means **Inquiry Costs** only.

(f) "**Derivative Investigation Costs**" means reasonable costs, charges, fees (including but not limited to attorneys' fees and experts' fees) and expenses incurred by the **Company** for its Board of Directors or any committee of the Board of Directors in investigating, analyzing or evaluating on behalf of the **Company** a **Shareholder Derivative Demand**, but shall not include compensation or benefits of any **Insured**.

(g) "**Employee**" means any past, present or future employee or officer of the **Company**, including any assistant general counsel or other in-house counsel, whether such employee is in a supervisory, co-worker or subordinate position or otherwise. **Employee** includes any part-time, seasonal, temporary employee, intern or volunteer of the **Company**.

"**Employee**" also means: (i) any individual who is leased to the **Company**; or (ii) any other individual who is contracted to perform work for the **Company** or who is an independent contractor, provided, any such individuals are engaged pursuant to an express written contract or agreement with the **Company** specifying the terms of such engagement. Any coverage afforded for **Claims** brought by or against these individuals shall apply with the following additional limitations:

Loss on account of any **Claim** against such individuals shall only be covered to the extent the **Company** indemnifies them for such Loss; and

The Insurer shall not pay **Loss** on account of any **Claim** alleging, based upon, arising out of, or attributable to any breach of an express written contract or agreement specifying the terms of the **Company's** engagement of any such individual.

(h) "**Employment Practices Wrongful Act**" means:

(1) wrongful dismissal, discharge or termination of employment, including but not limited to dismissal, discharge or termination resulting from a breach of an express or implied contract relating to employment, whether actual or constructive;

(2) harassment (which includes unwelcome sexual or non-sexual advances, requests for sexual or non-sexual favors or other verbal or physical conduct of a sexual or non-sexual nature that: (i) explicitly or implicitly are made a condition of employment, (ii) are used as a basis for employment decisions; or (iii) create a work environment that interferes with performance;

(3) employment discrimination based on age, gender, race, color, national origin, religion, creed, sexual orientation or preference, marital status, gender identity or expression, pregnancy, disability, health status, HIV status, military or veteran status, genetic makeup, political affiliation or any protected status established under federal, state or local law, ordinance or public policy;

(4) **Retaliation**;

(5) employment-related misrepresentation;

(6) wrongful failure to employ or promote, wrongful deprivation of career opportunity, wrongful demotion, wrongful discipline, or failure to grant tenure;

(7) negligent hiring or retention, negligent employee evaluation, including the giving of negative or defamatory statements in connection with an employee reference, or negligent supervision;

(8) failure to provide or enforce adequate or consistent corporate policies and procedures relating to any Employment Practices Violation;

(9) bullying, in any location, by any means, at any time;

(10) violation of the Uniformed Services Employment and Reemployment Rights Act or the Family and Medical Leave Act;

(11) violation of an individual's civil rights if such conduct relates to matters described in paragraphs 1-10, including, but not limited to, any violation of the Civil Rights Act of 1866 or 42 U.S.C. Section 1983; or

(12) libel, slander, defamation, infliction of emotional distress or mental anguish, humiliation, false or wrongful imprisonment, invasion of privacy and other personal injury allegations if such conduct relates to matters described in paragraphs 1-10

committed or attempted against an **Employee** or applicant for employment with the **Company**.

(i) "**ERISA**" means the Employee Retirement Income Security Act of 1974 (as amended) and any rules or regulations promulgated thereunder or any similar law.

(j) "**Executive**" means any past, present or future director, officer, trustee, governor, advisory or supervisory board member (including any duly elected or appointed member of a medical, scientific, technology or other advisory board), audit committee member, compensation committee member, management committee member, member of the board of managers, board observer, stockholders' representative, natural person general partner, general counsel, deputy general counsel or associate general counsel of the **Company**, or any foreign or functional equivalent of any of the foregoing. Provided, however, that the coverage provided under this Policy to board observers and stockholders' representatives shall be subject to the Retention provisions set forth in Section X, Limit of Liability and Retention paragraph (h), below.

(k) "**Extended Reporting Period**" means the period described in Section XI, **Extended Reporting** Period of this Policy.

(l) "**Extradition**" means a formal process by which an **Insured Person** is surrendered from his or her country of employment and domicile to any other country for trial or to otherwise answer any criminal accusation.

(m) "**Fiduciary**" means, with respect to a **Plan**, a fiduciary as defined in **ERISA**, or a person or entity who exercises discretionary control with respect to the management of the **Plan** or the disposition of **Plan** assets.

(n) "**Fiduciary Wrongful Act**" means:

(1) counseling of employees, beneficiaries or **Plan** participants with respect to any **Plan**;

(2) providing interpretations with respect to any **Plan**;

(3) handling assets, investments, administrative matters and/or records in connection with any **Plan**;

(4) enrolling, terminating or cancelling **Employees**, participants or beneficiaries under any **Plan**;

(5) overseeing, supervising, protecting or preserving any assets or investments of any **Sponsored Plan**;

(6) selecting, overseeing or supervising any advisor, trustee, consultant, administrator or other service provider to a **Plan**;

(7) otherwise performing or failing to perform obligations imposed by **ERISA** governing the administration of any **Plan**: or

(8) any act, error or omission in a settlor capacity regarding a **Sponsored Plan**, provided that such coverage shall be limited to **Defense Costs** only.

(o) "**Financial Claim**" means any **Claim** against an **Insured** brought:

(1) by any actual or alleged owner of any securities or other investment in the **Company** in such person's capacity as such;

(2) by any governmental, regulatory or administrative body, or other person or entity, arising out of, based upon or attributable to the purchase or sale or offer or solicitation of an offer to purchase or sell any securities of the **Company**, including without limitation any equity or debt interest in the **Company**;

(3) by any financial institution lender with respect to any such lender's loan to the **Company**; or

(4) derivatively on behalf of the **Company** by a creditor or owner of any securities or other investment in the Company.

(p) "**Financial Insolvency**" means: (i) the appointment of any examiner, receiver, conservator, administrator, liquidator, trustee, rehabilitator or similar official to control, supervise or manage the operations of or oversee the liquidation of the **Company**; (ii) the status of the **Company** as a debtor-in-possession; or (iii) the filing by the **Company** for protection from creditors under the United States Bankruptcy Code, under any federal or state receivership or liquidation statute or law, or under any other federal or state law relating to insolvency, or the foreign equivalent of any of the foregoing.

(q) "**Inquiry**" means:

(i) any verifiable request, subpoena or similar document by any law enforcement or governmental investigative authority: or
(ii) a written request by a **Company** in connection with an investigation of the **Company** by any law enforcement or governmental investigative authority;

compelling an **Insured Person** to provide witness testimony, produce documents or appear for an interview or meeting with respect to such **Insured Person's** capacity in the **Company** or the **Company's** business activities. **Inquiry** shall not include any routine or regularly scheduled oversight, compliance, audit, examination or inspection conducted by any law enforcement or governmental investigative authority.

(r) "**Inquiry Costs**" means reasonable costs, charges, fees and expenses incurred by an **Insured Person** in connection with the preparation for or response to an **Inquiry**. **Inquiry Costs** shall not include any compensation or benefits of any **Insured Person**.

(s) "**Insured**" means: (i) an **Insured Person**; (ii) the **Company**; or (iii) with respect to the coverage provided under Insuring Agreement C, Fiduciary Liability, any **Plan**.

(t) "**Insured Person**" means any past, present or future natural person:

(1) **Executive**, including any **Executive** serving in the capacity as a director, officer, trustee, governor, member of a management committee, member of the board of managers, general partner (of a limited partnership), or equivalent position of an **Outside Entity** but only if such service is at the specific request or direction, or with the consent of, the **Company**;

(2) **Employee**;

(3) with respect to Insuring Agreement C, **Fiduciary Liability**, any trustee, fiduciary, administrator or employee of any **Plan** so long as such trustee, fiduciary or employee is also an **Employee** of the **Company** or otherwise endorsed to this policy; or

(4) foreign equivalent of any of the foregoing.

With respect to whether a natural person is or was acting "at the specific request or direction, or with the consent of, the **Company**" as stated in paragraph (1) above, the Insurer shall abide by the **Named Insured's** decision on this issue made by written notice to the Insurer prior to the Insurer making any payment with respect to a **Claim** against such person. In the event no determination is made within thirty (30) days from the date of a written request by such natural person to the **Company** for reimbursement under the policy, the Insurer shall proceed as if the **Company** determined that the Insured was acting at the **Company's** specific direction or request, or with the **Company's** consent.

(u) "**Interrelated Wrongful Acts**" shall mean **Wrongful Acts** based on, arising out of, resulting from, in consequence of or involving any of the same or related or series of related facts, transactions or events.

(v) "**Loss**" means damages, judgments, settlements and **Defense Costs** incurred by any **Insured** on account of any **Claim**.

Subject to all other terms, conditions and exclusions, "**Loss**" shall specifically include any:

(1) pre- and post-judgment interest;

(2) punitive, exemplary or multiplied damages;

(3) fines, taxes or penalties imposed by law and incurred by **Insured Persons** in jurisdictions outside the United States, but only when insurable under the law of such foreign jurisdiction and only if such violation is neither intentional nor willful

(4) regarding Insuring Agreement A(1), taxes imposed by law upon an **Insured Person** in his or her capacity as such in connection with any bankruptcy, receivership, conservatorship or liquidation of a **Company**;

(5) regarding Insuring Agreement A, damages under Section 10 of the Securities Exchange Act of 1934, as amended;

(6) regarding Insuring Agreement A(1), civil fines or civil penalties incurred by an **Insured Person** under Section 2(g) 2(B) of the Foreign Corrupt Practices Act, as amended or pursuant to a similar provision of the UK Bribery Act of 2010;

(7) regarding Insuring Agreement A(3), **Derivative Investigation Costs**;

(8) regarding Insuring Agreement B, damages under the Age Discrimination in Employment Act and the Equal Pay Act, as amended;

(9) regarding Insuring Agreement C(1):

a. fines and penalties imposed upon an **Insured** under Section 502(c)

b. the 5% or less, or the 20% or less, civil penalties imposed upon the **Company** under §502(i) or (l), respectively, of **ERISA**;

c. the 15% or less civil penalties imposed under Section 4975 of the Internal Revenue Code of 1986 for covered judgments, provided that the Insurer's maximum aggregate liability for all such civil money penalties under this Policy shall be subject to a sublimit of $250,000 that shall be the maximum aggregate amount that the Insurer shall pay for all such penalties and shall be part of, and not in addition to, the Limit of Liability applicable to Insuring Agreement C;

d. civil penalties imposed for violation of the privacy provisions of the Health Insurance Portability and Accountability Act of 1996, provided that the Insurer's maximum aggregate liability for all such civil money penalties under this Policy shall be subject to a sublimit up to $1,000,000 but in no event greater than the Limit of Liability available applicable to Insuring Agreement C. This sublimit that shall be the maximum aggregate amount that the Insurer shall pay for all such penalties and shall be part of, and not in addition to, the Limit of Liability applicable to Insuring Agreement C;

e. civil penalties under the Pension Protection Act of 2006, as amended ("PPACA"), and any rules or regulations promulgated thereunder, provided that the Insurer's maximum aggregate liability for all such civil monetary penalties shall be subject to a sublimit of $500,000 that shall be the maximum aggregate amount that the Insurer shall pay for all such penalties and shall be part of, and not in addition to, the Limit of Liability applicable to Insuring Agreement C. No retention shall apply to Loss constituting civil penalties imposed by law upon an Insured for inadvertent violation of PPACA, and any rules or regulations promulgated thereunder;

f. civil penalties imposed under rules and regulations (including interim final rules and regulations) provided by governmental agencies (including the U.S. Department of Health and Human Services, the U.S. Department of the Treasury, the U.S. Internal Revenue Service ("IRS"), and the Department of Labor, the Office of Consumer Information and Insurance Oversight, and the Employee Benefits Security Administration, for inadvertent violations by an Insured of the Patient Protection and Affordable Care Act and the Health Care and Education Reconciliation Act of 2010 ("Health And Patient Care Penalties"), provided that the Insurer's maximum aggregate liability for all such civil money penalties under this Policy shall be subject to a sublimit of $250,000 that shall be part of, and not in addition to, the Limit of Liability applicable to Insuring Agreement C;

g. civil penalties or other awards imposed by the Pension Ombudsman appointed by the United Kingdom Secretary of State for Social Services or by the Occupational Pensions Regulatory Authority in the United Kingdom or any successor thereto, provided that any coverage for such penalties applies only if the funds or assets of a **Plan** are not used to fund, pay or reimburse the premium for this Policy;

h. civil fines and penalties imposed upon an **Insured** for violations of Section 301 of the Labor Management Relations Act, resulting from alleged violations of collectively bargained contracts in connection with a **Plan**;

(10)regarding Insuring Agreement C(2), **Voluntary Settlements**.

(11)Regarding Insuring Agreement C, all reasonable fees and expenses of an independent fiduciary if such fiduciary is retained to review a proposed settlement of a **Claim**. **Loss** shall also include reasonable fees and expenses of any counsel hired by such independent fiduciary to facilitate a review of such proposed settlement.

Provided, however that the availability of coverage for punitive, exemplary and multiplied damages shall be determined by the law which most favors insurability of such damages. The Insurer shall not contest the application of the law of, or removal of the litigation to, any jurisdiction that may provide for the insurability of punitive, exemplary or multiple damages if such law can be demonstrated as applicable by the **Insureds**.

The Insurer shall not assert that any portion of any award in or settlement of a **Claim** relating to alleged violations of Section 11, 12 or 15 of the Securities Act of 1933, or **Defense Costs** incurred in defending against any **Claim** brought under Section 11, 12 or 15 of the Securities Act of 1933, constitutes uninsurable loss.

"**Loss**" shall also include any reasonable fees and expenses of any attorney representing any party who has brought a **Claim** against any **Insured** where such fees and expenses are awarded pursuant to a covered judgment against an **Insured** or a covered settlement (consented to by the Insurer, which consent shall not be unreasonably withheld or denied) to which an **Insured** is a party.

"**Loss**" (other than **Defense Costs**) shall not include any:

(1) civil or criminal fines, taxes, or penalties imposed by law (except as otherwise provided in subsections (3), (4), (7), and (10);

(2) matters which are uninsurable under the law as determined by the law most favorable to the insurability of **Claim(s)** for such amounts;

(3) amount for which there is no legal recourse against any **Insured**;

(4) amounts owed by the **Company** to any **Plan**, including but not limited to participant contributions that any **Insured** failed to collect;

(5) amount which constitutes the return or reversion to the **Company** of any contribution or asset of any **Plan**;

(6) benefits under any **Plan**, including benefits which would be due under any **Plan** if such **Plan** complied with all applicable laws; provided that this exclusion from "**Loss**" does not apply to Insuring Agreement C(1) to the extent that such benefits: (i) are payable as a personal obligation of an **Insured Person**; or (ii) represent a decrease in value of the accounts of a **Plan** because of a change in value of the investments held by such **Plan**, regardless of whether such amounts have been characterized as “benefits” by counsel prosecuting any **Claim** or any court or tribunal adjudicating any **Claim**;

(7) costs to modify or adapt any building or property to be accessible or accommodating, or more accessible or accommodating, to any person;

(8) disability, social security, workers compensation, medical insurance, stock benefits (other than item 6 above), severance or any other employment related benefits or compensation other than salary, wages or cash bonus compensation;

(9) compensation earned by or due to a claimant in the course of employment but not paid, other than back pay or front pay;

(10) future compensation of a claimant who was, is or shall be hired, promoted or reinstated to employment;

(11) non-monetary relief;

(12) amounts sought under any contract or agreement; or

(13) employment termination severance payments other than payments negotiated with and consented to by the Insurer as part of a settlement.

Whether an **Insured** has incurred **Loss** shall be considered without regard to any indemnification or other insurance that may be available to such **Insured** from, as a result of or at the behest of any current or former direct or indirect shareholder of the **Company** (or any affiliate, control person or investment adviser of such shareholder). Nothing in this paragraph shall in any way affect the terms and conditions of Section XII, Other Insurance and Indemnification.

(w) "**Named Insured**" means the organization stated in Item 1. of the Declarations

(x) "**Non-indemnifiable Loss**" means Loss for which the **Company** is unable due to **Financial Insolvency** or not permitted to indemnify the **Insured Person(s)** pursuant to common or statutory law, contract or the Charter, By-laws, operating agreement or similar documents of the **Company**.

(y) "**Outside Entity**" means:

(1) a not-for-profit organization; or

(2) any other corporation, partnership, joint venture or other organization added as such in an endorsement to this Policy.

(z) "**Pension Plan**" means any employee pension benefit plan as defined in **ERISA**, including any employee stock ownership plan as defined in 26 U.S.C. §4975 but only if such employee stock ownership plan is disclosed in the **Application** or is formed during the **Policy Period**.

(aa) "**Plan**" means:

(1) any **Sponsored Plan**; or

(2) any government-mandated insurance for workers' compensation, unemployment, social security or disability benefits for **Employees**.

(bb) "**Policy Period**" means the period of time from the inception date shown in Item 2 of the Declarations to the earlier of the expiration date shown in Item 2 of the Declarations or the effective date of cancellation of this Policy.

(cc) "**Retaliation**" means any actual or alleged negative treatment of any **Insured Person** by an **Insured Person** in his or her capacity as such or by the **Company** in response to any such person:

(1) exercising any rights granted under law, including, without limitation, rights under any workers compensation laws, the Family and Medical Leave Act, or the Americans with Disabilities Act;

(2) refusing to violate or otherwise not comply with any law;

(3) assisting, testifying in, or cooperating with, a proceeding or investigation regarding violations of law by the **Company**;

(4) disclosing or threatening to disclose any violations of law to an **Executive** or any governmental agency; or

(5) filing any claim against the **Company** under the Federal False Claims Act or any similar law protecting "whistleblowers."

(dd) "**Settlement Program**" means any voluntary compliance resolution program or similar voluntary settlement program administered by the United States Internal Revenue Service, the United States Department of Labor or any other similar domestic or foreign governmental authority.

Such programs include, without limitation, the Employee Plans Compliance Resolution System, Audit Closing Agreement Program, Voluntary Compliance Resolution Program, Walk-in Closing Agreement Program, Administrative Policy Regarding Self-Correction, Tax Sheltered Annuity Voluntary Correction Program, Delinquent Filer Voluntary Compliance Program, and Voluntary Fiduciary Correction Program.

(ee)“**Settlement Program Notice**" means prior written notice to the Insurer by any **Insured** of the **Insured’s** intent to enter into a **Settlement Program**.

(ff) "**Shareholder Derivative Demand**" means:

(1) a written demand on the Board of Directors of the **Company** by one or more shareholders of the Company to assert a Claim on behalf of the **Company** against one or more **Executives** for a **Wrongful Act**; or
(2) any circumstance of which the Board becomes aware and which the Board reasonably believes may lead to a Shareholder Derivative action, but solely after reporting and obtaining the Insurer’s consent to incur **Derivative Investigation Costs**;

(gg)“**Sponsored Plan**” means:

(1) any **Welfare Plan** which was, is now, or hereafter becomes sponsored solely by the **Company**, or sponsored jointly by the **Company** and a labor organization, solely for the benefit of **Employees**;

(2) any **Pension Plan** which was, is now, or hereafter becomes sponsored solely by the **Company**, or sponsored jointly by the **Company** and a labor organization, solely for the benefit of the **Employees**;

(3) any employee benefit plan or program not subject to **ERISA** or any foreign equivalent plan sponsored solely by the **Company** for the benefit of **Employees**, including any fringe benefit or excess benefit plan;

(4) any voluntary employees’ beneficiary association as defined in the Internal Revenue Code of 1986, as amended (“VEBA”) established anywhere in the world; or

provided, however, that “**Sponsored Plan**” shall not include any multi-employer plan, as defined in **ERISA**.

"**Sponsored Plan**" **shall** include any trust established by the **Company** to hold the assets of any **Pension** or **Welfare** Plan.

(hh)“**Subsidiary**” means any entity during any time in which the **Named Insured**, directly or indirectly through one or more **Subsidiary(ies)**: (a) owns interests representing more than fifty percent (50%) of the voting, appointment or designation power for the selection of a majority of the board of directors, the management committee, the general partner(s), or the members of the board of managers of such entity; or (b) has the right, pursuant to written contract or the by-laws, charter, operating agreement, stockholder rights agreement, stock purchase agreement or similar agreement or document of an organization, to elect, appoint or designate a majority of the board of directors, the management committee, the general partner(s), manager(s) of an LLC, or the board of managers of such entity.

(ii) "**Third Party**" means any natural person customer, client, vendor, supplier, distributor or other business invitee of the **Company**.

(jj) "**Third Party Wrongful Act**" means any **Wrongful Act** constituting discrimination, harassment or bullying against a **Third Party** or any violation of such person's civil rights relating to such discrimination or harassment

(kk) "**Voluntary Settlement**" means any fees, fines, or penalties paid by an **Insured** to a governmental authority pursuant to a **Settlement Program** for the actual or alleged inadvertent non-compliance by a **Plan** with any statute, rule or regulation; provided that **Voluntary Settlement** shall not include (i) any costs to correct the non-compliance, or any other charges, expenses, taxes or damages; or (ii) any fees, fines, or penalties relating to a **Plan** which, as of the earlier of inception date of this Policy or the inception date of the first policy in an uninterrupted series of policies issued by the Insurer of which this Policy is a direct or indirect renewal or replacement, any **Insured Person** knew to be actually or allegedly non-compliant.

(ll) "**Wage and Hour Defense Costs**" means **Defense Costs** other than **Defense Costs** arising from that portion of any **Claim** that is brought or made in California or that is alleging, based upon, arising out of, or attributable to, in whole or in part, directly or indirectly, any violation of any California state or local wage and hour law.

(mm) "**Welfare Plan**" means any employee welfare benefit plan as defined under **ERISA**.

(nn) "**Wrongful Act**" means:

(1) With respect to Insuring Agreement A, Management and Company Liability, any error, misstatement, misleading statement, act, omission, neglect, or breach of duty, actually or allegedly committed or attempted by:

(a) any **Insured Person** in his or her capacity (including in such **Insured Person's** capacity as a controlling or selling shareholder) as such, or any matter claimed against any **Insured Person** by reason of his or her serving in such capacity, with respect to Insuring Agreement A1, Management Liability, and Insuring Agreement A2, **Company** Reimbursement; or

(b) the **Company**, with respect to Insuring Agreement A3, Company Liability; or

(2) With respect to Insuring Agreement B(1), Employment Practices Liability, any **Employment Practice Wrongful Act** actually or allegedly committed or attempted by any **Insured Person** in his or her capacity as such, or by the **Company**; or

(3) With respect to Insuring Agreement B(2), Employment Practices Liability, any **Third Party Wrongful Act** actually or allegedly committed or attempted by any **Insured Person** in his or her capacity as such, or by the **Company**; or

(4) With respect to Insuring Agreement C, Fiduciary Liability, any **Fiduciary Wrongful Act** actually or allegedly committed or attempted by any **Insured Person** in his or her capacity as such, or by the **Company**; or any matter claimed against any **Insured** by reason of his, her or its status as a **Fiduciary** of a **Sponsored Plan**.

III. EXCLUSIONS

(a) Regarding all Insuring Agreements, the Insurer shall not pay Loss in connection with that portion of a **Claim**:

(1) alleging, based upon, arising out of or attributable to any intentionally dishonest, deliberately fraudulent or deliberately criminal act or omission (other than an act or omission treated as a criminal violation in a foreign country that is not a criminal violation in the United States) or any illegal profit or remuneration by such **Insured**, if established by a final, non-appealable

adjudication in the underlying proceeding (the Insurer shall not utilize a declaratory action or proceeding brought by or against the Insurer to establish such final, non-appealable adjudication); provided, however, that this exclusion shall not apply to: (i) that part of **Loss** under Insuring Agreement B; (ii) **Defense Costs** incurred prior to such final non-appealable adjudication or (iii) coverage provided under Insuring Agreement A (2);

(2) alleging, based upon, arising out of, or attributable to any **Wrongful Act** or circumstances of which notice has been given and accepted under any insurance policy of which this Policy is a renewal or replacement or which it may succeed in time or any **Interrelated Wrongful Act(s)** thereto; provided that this exclusion shall not apply if the insurer of the other policy denies coverage solely based upon their conclusion that such notice did not meet the definition of "Claim" or a notice of circumstances under its policy; provided, further, that nothing contained in this subsection shall be deemed to affect the definition of **Claim** in this Policy, or as a waiver of the Policy provisions that a **Claim** must be first made within the **Policy Period** or any applicable **Extended Reporting Period**;

(3) alleging, based upon, arising out of, or attributable to: (i) any prior and/or pending litigation, civil, criminal, administrative or regulatory proceeding or investigation made or initiated against an **Insured** prior to the applicable Pending and Prior Litigation Date set forth in Item 6 of the Declarations; or (ii) any **Wrongful Act(s)** alleged therein or **Interrelated Wrongful Act(s)** thereto;

(4) brought by or on behalf of any **Insured** except where such **Claim** is brought or maintained:

(a) as a **Financial Claim** provided that such **Claim** is brought without the solicitation, assistance or active participation of any **Executive** unless the solicitation, assistance or active participation of such **Executive** is protected under Section 806 of the Sarbanes Oxley Act of 2002 18 USC 1514 A(a), or any similar state, local or foreign whistleblower statute;

(b) in the form of a cross-claim or third-party claim for contribution or indemnity by an **Insured Person** which is part of or results directly from a **Claim** which is not otherwise excluded by the terms of this Policy;

(c) by an **Insured** if the **Insured** has a legal duty to bring such **Claim** including but not limited to any duty compelled by statute, rule, regulation or common law, whether or not falling within protected "whistleblower" activity;

(d) by an **Insured Person** for an **Employment Practices Wrongful Act** or a **Fiduciary Wrongful Act**;

(e) by any examiner, trustee (including but not limited to a litigation trustee), receiver, conservator, administrator, liquidator, rehabilitator, creditor's committee, or the **Company** in its capacity as a debtor-in-possession after the appointment of trustee, receiver, conservator, liquidator, or rehabilitator, or any similar entity or person, or any assignee of any of the foregoing;

(f) by an **Executive** of the **Named Insured** or a **Subsidiary** which is formed and operating in a jurisdiction other than the United States or Canada, provided that such **Claim** is also brought and maintained outside of the United States and Canada by an **Insured Person** due to a pleading requirement of such jurisdiction;

(g) by any former **Executive**, who has not served in such capacity for at least one (1) year prior to such **Claim** being first made provided that such **Claim** is made without the assistance, participation or solicitation of any person who is a current **Executive** or has served in the capacity of an **Executive** during the one (1) year prior to the making of such **Claim**;

(h) by any **Insured Person** engaging in any protected “whistleblower” activity specified in 18 U.S.C. 1514A(a), Section 21F of the Securities and Exchange Act of 1934, the False Claims Act or any other similar “whistleblower” protection provided under any state, local or foreign law;

(i) by or on behalf of any **Employee** who is not an **Executive** provided that such **Claim** is made without the assistance, participation or solicitation of any person who is a current **Executive** or has served in the capacity of an **Executive** during the one (1) year prior to the making of such **Claim**;

(j) any **Claim** brought by an **Insured** if failure to make such **Claim** could reasonably be expected to result in criminal liability to the **Insured**

(5) alleging, based upon, arising out of, or attributable to any public offering of equity securities of the **Company** or the purchase or sale of, or offer or solicitation of an offer to purchase or sell, such equity securities subsequent to such public offering; provided, however, that this exclusion shall not apply to:

(a) any public offering of debt securities, or alleging a purchase or sale or offer or solicitation of an offer to purchase or sell such securities subsequent to such public offering;

(b) any purchase or sale of or offer or solicitation of an offer to purchase or sell any securities made pursuant to any exemption under the Securities Act of 1933, including but not limited to any purchase or sale made pursuant to Regulation D or Regulation S under the Securities Act of 1933;

(c) any **Claim** alleging a **Wrongful Act(s)** which occurred during the **Insured's** preparations to commence an initial public offering including any alleged **Wrongful Act(s)** which occurred during the road show; provided that this subsection shall apply only if such public offering did not occur;

provided, that the foregoing exclusion shall not apply to that part of **Loss** covered under Insuring Agreement B, Employment Practices Liability or Insuring Agreement C, Fiduciary Liability.

(6) for emotional distress, mental anguish, libel, slander, defamation or disparagement, assault, battery, loss of consortium, false arrest or imprisonment, malicious prosecution, abuse of process, wrongful entry or eviction, or invasion of privacy; provided, however, that this exclusion shall not apply to that part of any **Loss**: (i) covered under Insuring Agreement B Employment Practices Liability; or (ii) arising from any **Financial Claim**;

(7) for any actual, alleged or threatened discharge, dispersal, release, seepage, disposal or escape of **Pollutants**, or for any direction or request to test, monitor, clean up, remove, contain, treat, detoxify or neutralize **Pollutants**, or any voluntary decision to do so; provided that, except as to **Clean-Up Costs**, this exclusion shall not apply to any **Non-Indemnifiable Loss** or that part of any **Loss**: (i) covered under Insuring Agreement B, Employment Practices Liability; or (ii) arising from any **Financial Claim;**

Solely for purposes of this exclusion:

"**Clean Up Costs**" means expenses, including but not limited to legal and professional fees, incurred in testing for, monitoring, cleaning up, removing, containing, treating, neutralizing, detoxifying or assessing the effects of **Pollutants**; and

"**Pollutants**" means any substance exhibiting any hazardous characteristics as defined by, or identified on, a list of hazardous substances issued by the United States Environmental Protection Agency or any federal, state, county, municipal or local counterpart thereof or any foreign equivalent. Such substances shall include, without limitation, solids, liquids, gaseous, or thermal irritants, contaminants or smoke, vapor, soot, fumes, acids, alkalis, chemicals or waste materials (including materials to be reconditioned, recycled or reclaimed). **Pollutants** shall also mean any other air emission or particulate, odor, waste water, oil or oil products, infectious or medical waste, asbestos or asbestos products, noise, fungus (including mold or mildew and any mycotoxins, spores, scents or byproducts produced or released by fungi, but does not include any fungi intended by the **Insured** for consumption) and electric or magnetic or electromagnetic field;

(8) for bodily injury, sickness, disease or death of a person, or damage to or destruction of any tangible property, including the loss of use thereof; provided that this exclusion shall not apply to that part of any **Loss**: (i) arising from any **Financial Claim**; (ii) **Defense Costs** on account of a criminal proceeding for manslaughter (or any other similar offense); (iii) covered under Insuring Agreement B, Employment Practices Liability, for emotional distress or mental anguish; or (iv) covered under Insuring Agreement C, Fiduciary Liability, for (a) arising from a **Claim** for violations of ERISA by an Insured; or (b) arising from a **Claim** for an **Insured's** administration or management of a health care, pharmaceutical, vision or dental **Plan**;

(9) alleging, based upon, arising out of, or attributable to: (i) improper payroll deductions, unpaid wages, on-call time including but not limited to rest periods or meal breaks, misclassification of exempt or non-exempt employee status, compensation earned by or due to the claimant but not paid by the **Insured** (including but not limited to commission, vacation and sick days, retirement benefits, and severance pay), overtime pay for hours actually worked or labor actually performed by any **Employee** of the **Company**, or any violation of any federal, state, local or foreign statutory law or common law that governs the same topic or subject, or any rules, regulations or amendments thereto; or (ii) any violation of the responsibilities, obligations or duties imposed by the Fair Labor Standards Act (except the Equal Pay Act), as amended, or any rules or regulations promulgated thereunder, or similar provisions of any common or statutory federal, state, local or foreign law; provided that for that part of any Loss covered under Insuring Agreement B, Employment Practices Liability, this exclusion does not apply to: (a) any back pay or front pay allegedly due as the result of discrimination or that part of any **Loss** for **Retaliation**; or (b) **Wage and Hour Defense Costs;**

(10) for any violation of: (i) laws governing workers compensation, unemployment insurance, Social Security, disability or pension benefits; (ii) **ERISA**; (iii) the National Labor Relations Act; (iv) the Worker Adjustment and Retraining Notification Act; (v) the Consolidated Omnibus Budget Reconciliation Act of 1985; (vi) the Occupational Safety and Health Act, all as amended, or any rules or regulations promulgated thereunder, or similar provisions of any common or statutory federal, state local, or foreign law; provided, however, that this exclusion shall not apply to that part of **Loss**: (i) covered under Insuring Agreement C, Fiduciary Liability; or (ii) covered under Insuring Agreement B, Employment Practices Liability, arising from any **Retaliation**.

(b) Solely regarding Insuring Agreement A (3), Management and Company Liability, and Insuring Agreement C, Fiduciary Liability, the Insurer shall not pay **Loss** in connection with that portion of **Claim**:

(1) on account of any **Claim** alleging, based upon, arising out, or attributable to:

(a) any infringement, misappropriation, or violation of copyright, patent, service marks, trademarks, trade secrets, title or other proprietary or licensing rights or intellectual property of any products, technologies or services; or

(b) any goods or products manufactured, produced, processed, packaged, sold, marketed, distributed, advertised or developed by the **Company**;

provided that this exclusion shall not apply to any **Financial Claim** or **Antitrust Claim**;

(2) on account of any **Claim** for the **Company's** liability under any express written contract or agreement to which the Company is a party; provided that this exclusion shall not apply to:

(a) liability which would have attached in the absence of such contract or agreement;

(b) any **Claim** alleging a breach of any organizational document of the **Company**;

(c) as respects Insuring Agreement C, Fiduciary Liability, liability assumed by the **Company** in accordance with the terms of the documents pursuant to which any **Plan** is established;

(d) **Defense Costs** arising from a **Financial Claim**

provided that exceptions (b) and (d) above shall not apply to any **Claim** arising out of an M&A Agreement. An "M&A Agreement" is any agreement to sell, divest, transfer, pledge, hypothecate, merge or exchange any securities issued, or assets owned, by the **Company**. Notwithstanding the foregoing, coverage shall be available for any otherwise covered **Defense Costs** arising out of any **Claim** for any actual or alleged breach of any representation, warranty, or covenant specified within an M&A Agreement until it is established in any final adjudication that an **Insured Person** possessed actual knowledge prior to the execution of such M&A Agreement of the facts, events or conditions that constitute the core factual basis of such breach.

(3) on account of any **Claim** alleging, based upon, arising out of, or attributable to any wrongful employment termination, employment discrimination, or other **Employment Practices Wrongful Act**.

(4) on account of any **Claim** alleging, based upon, arising out of, or attributable to the rendering or failure to render professional services; provided that this exclusion shall not apply to the part of any Loss on account of any **Financial Claim**.

Solely regarding Insuring Agreement A, Management and Company Liability, and Insuring Agreement B, Employment Practices Liability, the Insurer shall not pay **Loss** on account of any **Claim** alleging, based upon, arising out of, or attributable to any act, error or omission in a settlor capacity regarding a **Sponsored Plan**.

The **Wrongful Act** of an **Insured** shall not be imputed to any other **Insured** for the purpose of determining the applicability of the foregoing exclusions.

IV. SPOUSAL &ESTATE COVERAGE EXTENSIONS

Subject to the terms of this Policy, coverage shall extend to any **Claim** against:

(a) the estates, heirs, legal representatives or assigns of deceased **Insured Persons**, and the legal representatives or assigns of **Insured Persons** who are incompetent, insolvent or bankrupt;

(b) the lawful spouse of an **Insured Person** or person qualifying as an **Insured Person's** domestic partner under the provisions of any applicable federal, state, local or foreign statutory or common law or the provisions of any formal program established by the **Company** to the extent the **Claim** arises out of his or her status as the spouse or domestic partner of such **Insured Person**, including a **Claim** that seeks damages recoverable from marital community property, property jointly held by the **Insured Person** and the spouse/domestic partner, or property transferred from the **Insured Person** to the spouse or domestic partner;

(c) any estate planning or wealth management device maintained by or for the benefit of an **Insured Person** or his/her spouse, children, domestic partner, estate, heirs or assigns, including, but not limited to, any grantor trust, irrevocable trust, revocable trust, bypass trust, GST trust, marital trust, corporation, partnership, or limited liability company,

but only to the extent that any of the foregoing is subject to a **Claim** by reason of a **Wrongful Act** by an **Insured**;

V. EMPLOYEE PRIVACY DEFENSE COSTS COVERAGE EXTENSION

If Insuring Agreement B is included in this Policy and subject to the provisions of this Policy including, without limitation, provisions applicable to Insuring Agreement B, the Insurer shall pay **Defense Costs** on behalf of the **Insureds** arising from an **Employee Privacy Violation Claim** first made against the **Insureds** during the **Policy Period**. The Insurer's maximum liability for all such **Defense Costs** shall be a sublimit of Liability of $250,000 in excess of the retention applicable to Insuring Agreement B(1). Such sublimit of Liability shall be part of, and not in addition to, the limit of liability applicable to Insuring Agreement B and shall be the maximum aggregate amount of Loss that the Insurer shall pay for any **Employee Privacy Violation Claim**. No coverage shall be available under this Section V under Insuring Agreements A or C.

In addition to amounts not included under Section II, Definitions, subsection (v), **Loss** for an **Employee Privacy Violation Claim** does not include any amounts:

(i) to retain third party computer forensics services;
(ii) to notify any **Employees** of an **Employee Privacy Violation**;
(iii) to retain the services of a law firm to determine the **Insured's** indemnification rights under a written agreement with an independent contractor or to determine the **Insured's** obligations under any privacy regulations;
(iv) for credit monitoring services; or
(v) to retain a public relations firm, crisis management firm or law firm for advertising or related communications for the purpose of protecting or restoring the **Insured's** reputation.

"**Employee Privacy Violation Claim**" means any **Claim** alleging, based upon, arising out of, or attributable to any actual or alleged **Employee Privacy Violation**.

"**Employee Privacy Violation**" means the **Company's** failure to:

(a) secure a **Record** from unauthorized access; or

(b) provide any legally required notice to an **Employee** whose **Record** was, or may have been, subject to unauthorized access.

"**Record**" means an **Employee's** last name together with either a first name or first initial in combination with such **Employee's**:

(a) social security number, driver's license number or other personal identification number (including without limitation, an employee ID number or student ID number);

(b) financial account number (including, without limitation, a bank account number, retirement account number, or healthcare spending account number); or,

(c) credit, debit or other payment card number.

VI. IMMIGRATION CLAIM COVERAGE EXTENSION

If Insuring Agreement B is included in this Policy and subject to the provisions of this Policy including, without limitation, provisions applicable to Insuring Agreement B, the Insurer shall pay **Defense Costs** on behalf of the **Insureds** arising from an **Immigration Claim** first made against the **Insureds** during the **Policy Period** for an **Immigration Wrongful Act**. The Insurer's maximum liability for all such **Defense Costs** shall be a sublimit of Liability of $250,000 in excess of the retention applicable to Insuring Agreement B(1). Such sublimit of Liability shall be part of, and not in addition to, the limit of liability applicable to Insuring Agreement B and shall be the maximum aggregate amount of Loss that the Insurer shall pay for any **Immigration Claim**. No coverage shall be available under this Section VI under Insuring Agreements A or C.

In addition to amounts not included under Section II, Definitions, subsection (v), **Loss** for an **Immigration Claim** does not include any amounts:

(i) incurred by the **Company** to comply with, or for failing to comply with the **IRCA**, including without limitation to comply with, or failing to comply with, any order issued pursuant to such laws or regulations;
(ii) any civil penalties the **Company** is ordered to pay pursuant to such violation of the **IRCA**; and
(iii) incurred by the **Company** in connection with any civil action brought pursuant to the **IRCA**.

"**Immigration Claim**" means any investigation of any **Insureds** commenced by the service upon the **Insured** of a notice of inspection, audit or investigation by any governmental agency for any actual or alleged hiring, harboring, employment, or attempted employment of illegal aliens or potential illegal aliens.

"**Immigration Wrongful Act**" means any actual or alleged violation of the Immigration Reform and Control Act of 1986 or any other similar federal or state regulations ("**IRCA**").

VII. WORKPLACE VIOLENCE COVERAGE EXTENSION

If Insuring Agreement B is included in this Policy, the Insurer shall pay **Workplace Violence Loss** on behalf of the **Insureds** arising from any **Workplace Violence** first commenced during the **Policy Period**. The Insurer's maximum liability for each **Single Workplace Violence Loss** shall be a sublimit of Liability of $250,000. Such sublimit of Liability shall be part of, and not in addition to, the limit of liability applicable to Insuring Agreement B. No coverage shall be available under this Section VII under Insuring Agreements A or C.

Coverage as described above shall extend to **Workplace Violence Loss** resulting from any **Workplace Violence** first commenced prior to the inception of the **Policy Period** provided that:

(a) the **Company** had substantially identical coverage in effect at the time of the prior **Workplace Violence**, such coverage was continuously maintained until the inception of this coverage, and

Discovery of such **Workplace Violence Loss** occurred after the time allowed for reporting such **Workplace Violence Loss** under the prior coverage;

(b) if prior coverage was provided by the Insurer or any affiliate of the Insurer, such prior coverage shall be terminated as of the inception of this coverage; and

(c) the Insurer's maximum liability for each **Single Workplace Violence Loss** shall not exceed the lesser of $250,000 or the limit or sublimit of liability available under the prior coverage; and

(d) if there is more than one **Insured**, the maximum liability of the Insurer for any **Single Workplace Violence Loss** sustained by more than one **Insured** shall not exceed the amount for which the Insurer would have been liable if the **Single Workplace Violence Loss** had been sustained by one **Insured**.

The amount that the Insurer shall pay for any **Single Workplace Violence Loss** shall not be cumulative from **Policy Period** to **Policy Period**.

The Insurer shall not be liable to pay **Workplace Violence Loss** arising from any:

(a) **Workplace Violence** initiated in connection with a demand for money, securities or other property; or

(b) declared or undeclared war, civil war, insurrection, rebellion or revolution, military, naval or usurped power, governmental intervention or authority, expropriation or nationalization, or any act or condition incident or related to any of the foregoing.

Knowledge possessed by any **Insured** or **Discovery** shall be deemed knowledge possessed or **Discovery** by all **Insureds**.

Upon **Discovery** and as a condition precedent to coverage for any **Workplace Violence Loss**, the **Company** shall provide to the Insurer:

(a) written notice of **Discovery** as soon as practicable, but no later than 90 days after the end of the **Policy Period**; and

(b) a sworn proof of **Loss** with full particulars.

No **Insured** shall institute legal proceedings against the Insurer regarding any **Workplace Violence Loss** more than 2 years after Discovery.

Regarding the coverage provided in this Coverage Extension:

(a) "**Insured Person**" shall include any natural person who was visiting the **Premises** for a lawful purpose; and

(b) "**Loss**" shall include **Workplace Violence Loss**.

(c) "**Discovery**" means knowledge acquired by an **Executive** that would cause a reasonable person to believe (i) a covered **Workplace Violence Loss** has occurred or (ii) that circumstances have arisen that may subsequently result in a covered **Workplace Violence Loss**, including **Workplace Violence Loss**:

1) sustained prior to the inception date specified in Item 2 of the Declarations for this Policy; or

2) for which exact details are unknown.

"**Premises**" means buildings, facilities or properties occupied by the **Company** in conducting its business activities.

"**Single Workplace Violence Loss**" means all **Workplace Violence Loss** arising out of a single incident or related incidents of **Workplace Violence**.

"**Workplace Violence**" means an intentional and unlawful act perpetrated against an **Insured Person** within the **Premises** involving use of a deadly weapon, or threat of such use.

"**Workplace Violence Loss**" means the following reasonable costs incurred by the **Company** in response to any **Workplace Violence**:

a) security guard services for up to 15 days;

b) security consulting for up to 90 days;

c) public-relations consulting for up to 90 days;

d) a single group counseling for **Employees**; and

e) forensics analysis.

"**Workplace Violence Loss**" shall not include attorneys' fees, expenses, settlements, judgments, penalties or other amounts incurred in defending or prosecuting any legal proceeding or claim involving any **Workplace Violence**.

Section III, Exclusions, Section X's Retention requirement, Section XI, Extended Reporting Period, and Section XIII, Notice, shall not apply to this Coverage Extension. The **Insureds** shall give the Insurer all information and cooperation as the Insurer may reasonably request.

VIII. CRISIS MANAGEMENT EXPENSES FOR NETWORK SECURITY BREACH COVERAGE EXTENSION

If Insuring Agreement A is included in this Policy, the Insurer shall pay **Crisis Management Expenses** on behalf of the **Company** arising from a **Network Security Breach** or **Privacy Violation** occurring during the **Policy Period**. The Insurer's maximum liability for all **Crisis Management Expenses** shall be a sublimit of Liability of $25,000. Such sublimit of Liability shall be part of, and not in addition to, the limit of liability applicable to Insuring Agreement A. Regarding the coverage provided in this Section VIII, and as a condition precedent to coverage, the Insureds shall give to the Insurer written notice of any **Network Security Breach** or **Privacy Violation** for which **Crisis Management Expenses** coverage is requested. Such notice shall be given as soon as practicable but no later than 90 days after the end of the **Policy Period**. No coverage shall be available under this Section VIII under Insuring Agreements B or C.

Regarding the coverage provided in this Section VIII, "**Loss**" shall include **Crisis Management Expenses.**

"**Computer System**" means any computer hardware, software or firmware, and components thereof including data stored thereon, that is owned or leased by the **Company**, and is under the direct operational control of the **Company**; provided that **Computer System** does not include any disconnected devices including, but not limited to, laptops, mobile devices or memory storage data devices.

"**Crisis Management Expenses**" means reasonable and necessary fees and expenses incurred by an **Insured**, with the Insurer's prior written consent, for:

(a) public relations firm services to mitigate reputational damage resulting from any **Network Security Breach** or **Privacy Violation**; and workplace violence;

(b) legal services (by an attorney selected from the Insurer's panel of lawyers) regarding any **Network Security Breach** or **Privacy Violation** to:

    (1) provide counsel on the obligations of any applicable Privacy Law; and

    (2) draft notices required by any applicable Privacy Law.

"**Crisis Management Expenses**" shall exclude any: (i) compensation, internal expenses or overhead of any **Insured**; or (ii) payments made as compensation for any injury or damages resulting from any **Network Security Breach** or **Privacy Violation**.

"**Malicious Code**" means any virus, Trojan, worm or other similar malicious software program, code or script designed to infect, harm, harm data on, or steal data from, a computer system.

"**Network Security Breach**" means any:

(a) unauthorized access to, or unauthorized use of, a **Computer System**; or

(b) transmission of **Malicious** Code into or from a **Computer System**.

"**Privacy Violation**" means any:

(a) theft or unauthorized copying of **Private Information** while in the care, custody or control of an **Insured**; or

(b) violation of a **Privacy Law** by an **Insured**.

"**Privacy Law**" means those parts of the following laws regulating the use and protection of non-public personal information:

(a) Health Insurance Portability and Accountability Act of 1996 (HIPAA);

(b) Gramm-Leach Bliley Act of 1999 (GLBA);

(c) consumer protection and unfair and deceptive trade practice laws enforced by state Attorneys General or the Federal Trade Commission, including, without limitation, Section 5(a) of the FTC Act 15;

(d) security breach notification laws that require notice to individuals of the actual or potential theft of their non-public personal information, including, without limitation, the California Security Breach Notification Act of 2003 (CA SB 1386); or

(e) domestic or foreign privacy laws requiring reasonable security for non-public personal information or the adoption of a privacy policy limiting the sale, disclosure or sharing of non-public personal information.

"**Private Information**" means any:

(a) individual's name in combination with any of the following:

    (1) social security number;

    (2) drivers license number or any other state identification number;

    (3) medical or healthcare data, including protected health information; or

(b) non-public personal information as defined in any **Privacy Law**; or

(c) confidential or proprietary business information of a third-party that is protected under a written non-disclosure agreement between such third-party and the **Company**.

Section III, Exclusions, Section X's Retention requirement, Section XI, Extended Reporting Period, and Section XIII, Notice, shall not apply to this Coverage Extension. The **Insureds** shall give the Insurer all information and cooperation as the Insurer may reasonably request.

IX. ASSET PROTECTION COSTS COVERAGE EXTENSION

It is agreed that solely regarding Insuring Agreement A, Management and Company Liability, the Policy is amended as follows:

1. Section II, Definitions, subparagraph (f), **Defense Costs**, is amended to add the following:

   - **Defense Costs** also means that part of **Loss** consisting of **Asset Protection Costs** arising from a **Claim**, provided that the Insurer's maximum Limit of Liability shall be:

     (1) $50,000 per **Executive**, and
     (2) $250,000 in the aggregate for all **Executives** ("Asset Protection Costs Sublimit")

   which amount shall be part of, and not in addition to the Limit of Liability as set forth in Item 6.A. of the Declarations.

2. Section II, Definitions, is amended to add the following:

   - **Asset Protection Costs** means that portion of **Defense Costs** constituting reasonable costs, charges, fees and expenses incurred by an **Executive**, with the Insurer's consent, to oppose any efforts by an **Enforcement Unit** to seize or otherwise enjoin the personal assets or real property of such **Executive** or to obtain the discharge or revocation of a court order entered during the **Policy Period** in any way impairing the use thereof.

   - **Enforcement Unit** means any federal, state, local or foreign law enforcement or governmental authority (including, the U.S. Department of Justice, the U.S. Securities and Exchange Commission and any attorney general) or the enforcement unit of any securities exchange or similar self-regulatory body however, **Enforcement Unit** shall not include the U.S. Department of Labor, the U.S. Pension Benefit Guaranty Corporation, or any similar governmental authority located outside the United States, including, the Pensions Ombudsman appointed by the United Kingdom Secretary of State for Work and Pensions or by the United Kingdom Occupational Pensions Regulatory Authority or any successor thereto.

X. LIMIT OF LIABILITY AND RETENTION

(a) The Insurer shall pay **Loss**, excess of the applicable Retention stated in Item 6 of the Declarations, up to the Limit of Liability under each Insuring Agreement, as stated in Item 6 of the Declarations, arising from a **Claim** first made against an **Insured** during the **Policy Period** or, if applicable, **Extended Reporting Period**. Such amount shall be the maximum liability of the Insurer under each Insuring Agreement, respectively, for all **Loss**, including **Defense Costs**, arising out of all **Claims** for which this Policy affords coverage. The Retention may be paid by any **Insured** or difference in conditions (DIC) insurer.

(b) The maximum liability of the Insurer for all **Derivative Investigation Costs**, and **Wage and Hour Defense Costs** shall be the applicable sublimit amounts stated in Item 6 of the **Declarations**. The **Derivative Investigation Costs** sublimit shall be part of, and not in addition to, the Management and Company Liability Limit of Liability stated in Item 6.A of the Declarations. **Derivative**

Investigation Costs shall not be subject to any Retention. The Third Party Liability and **Wage and Hour Defense Costs** sublimits specified in Items 6.B.(2) and (3) of the Declarations shall be part of, and not in addition to, the Employment Practices Liability Limit of Liability stated in Item 6.B.(1) of the Declarations, and the Retentions applicable to the Third Party Liability and **Wage and Hour Defense Costs** coverages shall be as specified in Items 6.B.(2) and (3) of the Declarations. Such sublimits shall in no way serve to increase such Limits of Liability, or the Aggregate Limit of Liability, as provided on the Declarations.

(c) If elected, the amount set forth in Item 6 Aggregate Limit of Liability of the Declarations shall be the Insurer's maximum liability for all Loss, including **Defense Costs**, covered under this Policy.

(d) If coverage is available for a **Claim** under more than one Insuring Agreement, the maximum applicable Limit of Liability for such **Claim** shall be the largest applicable remaining Limit of Liability under such Insuring Agreements.

(e) In the event that a single **Claim** is covered under more than one Insuring Agreement, each applicable Retention shall be separately applied to the part of the **Loss** resulting from such **Claim** covered by each Insuring Agreement. The sum of the total Retentions as finally applied shall constitute the Retention applicable to such **Claim** but in no event shall the total Retentions exceed the largest single Retention under the applicable Insuring Agreements.

(f) A single Retention shall apply to **Loss** arising from all **Claims** alleging the same **Wrongful Act(s)** or **Interrelated Wrongful Act(s)**.

(g) All **Companies** shall provide indemnification for **Loss**, and advance **Defense Costs**, on behalf of any **Insured Person** to the fullest extent permitted or required by law. If such indemnification or advancement is permitted or required by law and all such **Companies**:

(1) refuse in writing to indemnify or advance Loss within the Retention; or
(2) fail to indemnify or advance **Loss** within the Retention within 60 days after any written request of an **Insured Person** for such indemnification or advancement,

other than because of **Financial Insolvency**, then the Insurer shall indemnify or advance such amounts under Insuring Agreement A(1). In such case, such **Companies** shall reimburse the Insurer for such amounts within the applicable Insuring Agreement A(2) Retention that would have applied if indemnification or advancement had been made. Such amounts shall become immediately due and payable as a direct obligation of such **Companies** to the Insurer. The refusal or failure of the **Company** to perform any of its obligations to indemnify **Loss** or to advance **Defense Costs** shall not impair the rights of any **Insured Person** under this Policy. No advancement of **Loss** by the Insurer shall relieve the **Company** of any duty it may have to provide advancement or indemnification to any **Insured Person**.

(h) Regarding Loss attributable to the **Wrongful Acts** of an **Insured Person**, whether such **Insured Person** has incurred **Loss** shall be considered without regard to any indemnification or other insurance that may be available to such **Insured** from, as a result of or at the behest of any direct or indirect shareholder of the **Company** (or any affiliate, control person or investment adviser of such shareholder).

XI. EXTENDED REPORTING PERIOD

If this Policy is not renewed by either the **Named Insured** or the Insurer or is cancelled by the **Named Insured**, then upon payment of an additional premium as indicated in Item 4 of the Declarations, the Named **Insured** shall have the right to purchase, a one through six-year extension of coverage provided by this Policy with respect to any Claim first made during such term ("**Extended Reporting Period**") following the effective date of cancellation or non-renewal, but only with respect to a **Wrongful Act** occurring prior to the effective date of cancellation or non-renewal.

The rights contained in this paragraph shall terminate unless written notice of such election together with the additional premium due is received by the Insurer within sixty (60) days after the effective date of cancellation or nonrenewal. The additional premium for the **Extended Reporting Period** shall be fully earned at the inception of the Extended Reporting Period. The **Extended Reporting Period** is not cancelable. This clause and the rights contained herein shall not apply to any cancellation resulting from non-payment of premium.

The Limit of Liability for the **Extended Reporting Period** shall be part of, and not in addition to, the Limit of Liability for the **Policy Period**.

XII. OTHER INSURANCE AND INDEMNIFICATION

If any **Loss** under this Policy is insured under any other valid and collectible insurance policy, this Policy shall be excess of and shall not contribute with such other insurance regardless of whether such other insurance is stated to be excess, contributory, contingent or otherwise, unless such other insurance is written specifically excess of this Policy if by reference in such other insurance to this Policy's policy number.

Any coverage afforded under this Policy for a **Claim** against an **Insured Person** in connection with his or her service at an **Outside Entity** or a **Claim** arising out of a **Wrongful** Act of an **Insured Person** who is a leased employee, coverage as is afforded by this Policy shall be specifically excess of any valid and collectible indemnification provided by such **Outside Entity** or leasing company and any valid and collectible insurance provided to such **Outside Entity** or such leasing company.

Any personal umbrella excess liability insurance, independent director's liability insurance or any other similar personal liability insurance available to an **Insured** shall be specifically excess of this Policy.

XIII. NOTICE

(a) The **Company** or the **Insureds** shall, as a condition precedent to any right of payment under this Policy, provide the Insurer, at the address specified in Item 5 of the Declarations, with written notice of any **Claim**. Such notice shall be provided as soon as practicable after the General Counsel, Chief Financial Officer, Risk Manager or Human Resources Director (or equivalent positions) of the **Company** first receives written notice of such **Claim**, and in any event, no later than ninety (90) days after the end of the **Policy Period** or **Extended Reporting Period**, if applicable.

Written notice to the Insurer may be provided by electronic mail, certified mail, express mail, Federal Express, overnight courier, U.S. mail, facsimile transmission or the equivalent and shall be deemed to have been given upon the date of mailing or transmission.

(b) If during the **Policy Period** an **Insured** shall become aware of any specific circumstances which may reasonably be expected to give rise to a **Claim** against an **Insured** and provides written notice to the Insurer of such circumstances and the reasons for anticipating such a **Claim**, with full particulars as to dates, persons and entities involved, then any **Claim** which is subsequently made against the **Insureds** and reported to the Insurer alleging, arising out of, based upon or attributable to any **Wrongful Act** specified within such notice or alleging any **Interrelated Wrongful Act** thereto shall be considered made at the time such notice was given.

XIV. AUTHORIZATION

Except with respect to the provision of notice pursuant to Section XIII, Notice above (which may be done by any **Insured**), the **Named Insured** shall act on behalf of the **Insureds** with respect to the giving and receiving of notices, the payment of premiums and the receiving of any return premiums that may become due under this Policy, the receipt and acceptance of any endorsements issued to form a part of this Policy, and the exercising or declining of the right to tender the defense of a **Claim** to the Insurer.

XV. DEFENSE COSTS, SETTLEMENTS AND JUDGMENTS

(a) The Insurer does not assume any duty to defend. It is the **Insureds'** duty to defend any **Claim** against them. Notwithstanding the foregoing, the **Insureds** shall have the right to tender the defense of the Claim to the Insurer, which right shall be exercised in writing by the **Named Insured**, **or** its representative, on behalf of all **Insureds** to the Insurer at the time notice of a **Claim** is first provided pursuant to Clause XIII Notice. This right shall terminate if not exercised when the Notice of Claim is first provided to the Insurer. Further, from the date the **Claim** is first made against an **Insured** to the date when the Insurer accepts the tender of the defense of such **Claim**, the **Insureds** shall take no action, or fail to take any required action, that prejudices the rights of any **Insured** or the Insurer with respect to such **Claim**. The assumption of the defense of the **Claim** shall be effective upon written confirmation sent thereof by the Insurer to the **Named Insured**. Once the defense has been tendered, the **Insured** shall have the right to effectively associate with the Insurer in the defense and negotiation of any settlement of a **Claim**; provided however, the Insurer shall not be obligated to defend such **Claim** after the Policy Aggregate Limit of Liability or any applicable Separate Limit of Liability have been exhausted.

When the Insurer has not assumed the defense of a **Claim** the Insurer shall have the right and be given the opportunity, at its sole expense, to associate itself in the defense and settlement of any **Claim** that appears reasonably likely to involve this Policy. The **Company** and the **Insureds** shall give the Insurer full cooperation and such information as it may reasonably require

(b) The **Insureds** shall neither admit nor assume any liability, offer or enter into any settlement agreement, stipulate to any judgment or incur any **Defense Costs** in excess of the applicable Retention without the prior written consent of the Insurer, which consent shall not be unreasonably withheld. If the **Insureds** are able to settle all **Claims** (including **Defense Costs**) in an amount, not exceeding the Retention, the consent of the Insurer shall not be required for the settlement of such **Claims**.

(c) The Insurer shall advance **Defense Costs** on a current basis, no later than every 60 days. The advancement of **Defense Costs** shall be made without regard to the creditworthiness of any **Insured** and without regard to the recipient's financial condition or ability to repay any amounts advanced. Such advanced payments by the Insurer shall be repaid to the Insurer by the **Insured Persons** or the **Company**, severally according to their respective interests, in the event and to the extent that the **Insured Persons** or the **Company** shall not be entitled under the terms and conditions of this Policy to payment of such **Defense Costs**.

(d) The Insurer's duty to advance **Defense Costs** shall cease upon the exhaustion of any applicable Limit of Liability.

(e) The **Insureds** shall give the Insurer all information and cooperation as the Insurer may reasonably request. The failure of any **Insured Person** to cooperate with the Insurer shall not affect coverage for any other **Insured Person**

XVI. ALLOCATION

If an **Insured** who is afforded coverage for a **Claim** incurs an amount consisting of both **Loss** that is covered by this Policy and also loss that is not covered by this Policy because such **Claim** includes both covered and uncovered matters, then loss incurred by such **Insured** from such **Claim** shall be allocated between covered **Loss** and uncovered loss based upon the relative legal exposures of the parties to such matters. Notwithstanding, if the **Insured** tenders the defense of a **Claim** to the Insurer, pursuant to Section XV, Defense Costs, Settlements and Judgments, one hundred percent (100%) of **Defense Costs** incurred by such **Insured** on account of such **Claim** shall be allocated as covered **Loss**. All remaining loss incurred by such **Insured** from such **Claim** shall be allocated between covered **Loss** and uncovered loss based upon the relative legal exposures of the parties to such matters.

XVII. CANCELLATION AND RENEWAL

This Policy may be canceled by the **Named Insured** at any time by mailing written notice to the Insurer or by surrender of this Policy to the Insurer or its authorized agent. The **Policy Period** terminates at the date and hour specified in such notice, or at the date and time of surrender, whichever is later. The Insurer shall have the right to the premium amount for the portion of the **Policy Period** during which the Policy was in effect.

This Policy may be canceled by the Insurer only in the event of non-payment of premium by the **Named Insured**. In such case, the Insurer may cancel this Policy by delivering to the **Named Insured** or by mailing to the **Named Insured**, by registered or certified mail, at the **Named Insured's** address as shown in Item 1 of the Declarations, written notice stating when, not less than 30 days thereafter, the cancellation shall be effective. The mailing of such notice as aforesaid shall be sufficient proof of notice. The **Policy Period** terminates at the date and hour specified in such notice. The Insurer shall have the right to the premium amount for the portion of the **Policy Period** during which the Policy was in effect.

If the period of limitation relating to the giving of notice of cancellation is prohibited or made void by any law controlling the construction thereof, such period shall be deemed to be amended so as to be equal to the minimum period of limitation permitted by such law.

XVIII. COVERAGE FOR NEW SUBSIDIARIES AND PLANS/TERMINATION OR CESSATION OF SUBSIDIARIES AND PLANS

If before or during the **Policy Period**, the **Company** creates or acquires a new **Subsidiary** or **Plan** or acquires any entity by merger such that the **Company** is the surviving entity (collectively, a "Transaction"), then coverage under this Policy shall apply to such new organization, its **Insured Persons** or **Plans**, but only for **Wrongful Acts** occurring after the effective date of the Transaction.

There shall be no coverage available under this Policy for any **Claim** made against the acquired entity, its **Plans**, or its **Insured Persons** for any **Wrongful Acts** committed or allegedly committed before the effective date of the Transaction.

If before or during the **Policy Period**, an entity ceases to be a **Subsidiary** or **Plan**, coverage with respect to such entity and its **Insureds** shall continue until the end of the **Policy Period**, but only for **Wrongful Acts** occurring prior to the date such entity ceased to be a **Subsidiary** or **Plan**.

XIX. CHANGE IN CONTROL

If during the **Policy Period** one of the following events occur (each, a “Change In Control”):

(a) the **Named Insured** shall consolidate with or merge into, or sell all or substantially all of its assets to any other person or entity or group of persons or entities (not **Insureds**) acting in concert, such that the **Named Insured** is not the surviving entity;

(b) any person or entity, or group of persons or entities, acting in concert, shall acquire an amount of the outstanding securities representing more than 50% of the voting power for the election the board of directors (for corporations), management committee members (for joint ventures) members of the board of managers (for limited liability companies), or general partners (for limited partnerships) of the **Named Insured**, or acquires the voting rights of such an amount of such securities; or

(c) the sale, spin-off, or termination of any **Plan**;

then the **Insured** has the right to elect an Extended Reporting Period (ERP) pursuant to the terms set forth in Section XI Extended Reporting Period of this Policy. If the **Insured** does not elect an ERP, then this Policy shall continue in full force and effect as to **Wrongful Acts** occurring prior to the effective time of the **Change In Control**, but there shall be no coverage afforded by any provision of this Policy for any **Wrongful Act** occurring after the effective time of the **Change In Control**. Notwithstanding the foregoing, if a **Plan** is terminated and the **Insured** does not elect an ERP, coverage under Insuring Agreement C for such **Plan** and its **Insureds** shall continue until termination of this policy or expiration of the **Policy Period**, whichever is earlier, for **Wrongful Acts** occurring prior to or after the effective time of such termination.

This Policy may not be canceled after the effective time of the **Change In Control** and the entire premium for this Policy shall be deemed earned as of such time.

In the event of an initial public offering (IPO) of the **Company's** equity securities, if within thirty (30) days prior to the effective time of such IPO, the **Company** gives the Insurer written notice thereof together with any additional information requested by the Insurer, then the Insurer shall provide the **Company** with any terms, conditions and additional premium as may be required by the Insurer to provide coverage therefore.

The **Named Insured** shall give the Insurer written notice of the **Change In Control** as soon as practicable, but not later than 30 days after the effective date of the **Change In Control**.

The **Financial Insolvency** of the **Company** shall not, in itself, constitute a **Change in Control**.

XX. ACTION AGAINST INSURER, ASSIGNMENT, AND CHANGES TO THE POLICY

(a) The **Insured** shall not take any action against the Insurer unless, as a condition precedent thereto, there has been compliance in all material respects with all of the material terms and conditions of this Policy.

(b) No person or organization shall have any right under this Policy to join the Insurer as a party to any action against an **Insured** to determine its liability, nor may the **Insured** implead the Insurer in any **Claim**.

(c) This Policy and any and all rights hereunder are not assignable without the written consent of the Insurer.

(d) This Policy, including the declarations, application, and any endorsements hereto, constitutes the entire agreement between the Insurer and the **Insureds** regarding the coverage provided hereunder. After issuance, the terms, conditions and limitations of this Policy may only be waived or changed by written endorsement signed by the Insurer and agreed to by the **Named Insured**.

XXI. REPRESENTATIONS AND SEVERABILITY

The **Insureds** understand that the Insurer has relied upon the accuracy and completeness of the statements, representations and particulars contained in the **Application**, which statements, representations and particulars are deemed incorporated into and constitute a part of this Policy. The wording of this policy supersedes any contrary wording concerning severability and rescission.

The **Insureds** agree that in the event that the statements, representations and particulars contained in the **Application** are not accurate and complete and materially affect either the acceptance of the risk or the hazard assumed by the Insurer under the Policy, then this Policy shall be void ab initio as to any **Insured** who knew as of the inception date of the Policy Period of the facts that were not accurately and completely disclosed in the **Application** (whether or not such **Insured** knew that such facts were not accurately and completely disclosed in the **Application**). No knowledge or information possessed by any **Insured** shall be imputed to or deemed to be possessed by any other **Insured** for purposes of this Section.

Under no circumstances shall the Insurer be entitled to rescind this Policy.

XXII. OTHER TERMS AND CONDITIONS

(a) This Policy shall apply to **Claims** made against an **Insured** anywhere in the world.

(b) The descriptions in the headings of this Policy are solely for convenience and form no part of the terms and conditions of coverage.

(c) All premiums, limits, Retentions, **Loss** and other amounts under this Policy are expressed and payable in the currency of the United States of America. If judgment is rendered, settlement is denominated or other elements of **Loss** are stated or incurred in a currency other than United States of America dollars, payment of covered **Loss** due under this Policy (subject to the terms, conditions and limitations of this Policy) shall be made either in such other currency (at the option of the Insurer and if agreeable to the **Named Insured**) or in United States of America dollars, at the rate of exchange published in The Wall Street Journal on the date the Insurer's obligation to pay such **Loss** is established (or if not published on such date the next publication date of The Wall Street Journal).

(d) If the expiring policy which this Policy replaces (Expiring Policy) is not on the EPIC Private Company Insurance Policy form and the Expiring Policy is received, reviewed and accepted by the Insurer prior to the issuance of any binder for this Policy, then regarding any **Claim** first made and reported during the **Policy Period**, or **Extended Reporting Period**, if applicable, this Policy shall provide coverage no less broad than the Expiring Policy, provided that (i) such coverage shall be subject to the retentions and limit of liability afforded under this Policy .and (ii) this section (d) shall not apply to any endorsement to this Policy.

XXIII. ORDER OF PAYMENTS

In the event of **Loss** arising from one or more **Claim(s)** for which payment is due under the provisions of this Policy, then the Insurer shall:

(a) first, pay such **Loss** for which coverage is provided under Insuring Agreement A(1), Management Liability, or **Loss** of any **Insured Person** under any other Insuring Agreement that is not indemnified by the **Company**; then,

(b) with respect to whatever remaining amount of the Limit of Liability is available after payment of such **Loss** pursuant to (a) above, pay such Loss for which coverage is provided under Insuring Agreement A(2), Company Reimbursement; then

(c) with respect to whatever remaining amount of the Limit of Liability is available after payment of such **Loss** pursuant to paragraphs (a) and (b) above, pay such **Loss** for which coverage is provided by Insuring Agreement A(3), Company Liability; then
(d) after payment of such **Loss** pursuant to paragraphs (a), (b) and (c) above, the remaining Limit of Liability shall thereupon become available for any covered **Claims** that may arise in the future.

In the event that any **Insured** for any reason seeks any order, ruling or other determination from any court or other authority that amounts may be paid under this Policy notwithstanding the **Financial Insolvency** of the **Company** or any other person or entity, then all costs, charges, fees and expenses incurred by an **Insured** with respect to such efforts shall be considered **Defense Costs** within the meaning of this Policy.

Nothing in this Section shall be construed to increase the Limit of Liability of the Insurer under this Policy which such Limit of Liability shall remain the maximum liability of the Insurer for all **Claims** under all Insuring Agreements under this Policy combined.

The **Financial Insolvency** of the **Company** or **Insured Person** shall not relieve the Insurer of any of its obligations under this Policy, including its obligation to prioritize payment of covered **Loss** pursuant to this Section.

XXIV. SUBROGATION

In the event of any payment under this Policy, the Insurer shall be subrogated to the **Insureds'** rights of recovery thereof against any person or entity, and the **Company** and the **Insureds** shall execute all papers required and shall do everything reasonably necessary to secure such rights, including the execution of such documents necessary to enable the Insurer to effectively bring suit in the name of the **Company** or the **Insureds**.

If the Insurer recovers, either through subrogation or recoupment, any portion of an amount paid under this Policy, the Insurer shall reinstate the applicable limit of liability with any amounts recovered up to such amount paid, less costs incurred by the Insurer in its recovery efforts.

The Insurer shall not subrogate against any **Insured Person**. or against any current or former direct or indirect shareholder of the Named Insured or any affiliate or control person of any such shareholder.

XXV. ADDITIONAL LIMIT OF LIABILITY

(a) If Insuring Agreement A is included in this Policy, an additional limit of Liability of $1,000,000 ("Additional Limit of Liability") shall be available to pay **Non-Indemnifiable Loss** covered under Insuring Agreement A (1).

(b) The Additional Limit of Liability shall be in addition to, and not part of, the Limit of Liability applicable to Insuring Agreement A.

(c) The Additional Limit of Liability shall be excess of any valid and collectible insurance that is specifically excess of this Policy. Such excess insurance must be exhausted by the payment of loss covered thereunder before the Insurer shall be liable to pay the Additional Limit of Liability.

(d) **Loss** covered under Insuring Agreement A(1) shall be allocated between, and paid by the Insurer under, the Limit of Liability applicable to Insuring Agreement A and any Additional Limit of Liability in whatever portions will maximize the total amount of covered **Loss** being paid under this Policy.

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SIGNATURES

Named Insured			Endorsement Number
ENGEO Inc			
Policy Symbol	Policy Number	Policy Period	Effective Date of Endorsement
DON	**G48733396 002**	**09/01/2025 to 09/01/2026**	**09/01/2025**
Issued By (Name of Insurance Company)			
Westchester Surplus Lines Insurance Company			

THE ONLY SIGNATURES APPLICABLE TO THIS POLICY ARE THOSE REPRESENTING THE COMPANY NAMED ON THE FIRST PAGE OF THE DECLARATIONS.

By signing and delivering the policy to you, we state that it is a valid contract.

ILLINOIS UNION INSURANCE COMPANY (A stock company)
525 W. Monroe Street, Suite 400, Chicago, Illinois 60661

WESTCHESTER SURPLUS LINES INSURANCE COMPANY (A stock company)
Royal Centre Two, 11575 Great Oaks Way, Suite 200, Alpharetta, GA 30022

Brandon Peene, Secretary

Juan Luis Ortega, President

Authorized Representative

PRIVACY AND DATA BREACH EXCLUSION

Named Insured ENGEO Inc		Endorsement Number
Policy Number G48733396 002	Policy Period 09/01/2025 to 09/01/2026	Effective Date of Endorsement 09/01/2025
Issued By Westchester Surplus Lines Insurance Company		

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

EPIC PRIVATE COMPANY INSURANCE POLICY

In consideration of the premium charged, it is agreed that Section III, Exclusions, subsection (a) is amended to add the following:

- alleging, based upon, arising out of or attributable to any:

  (A) unauthorized or unlawful access to, alteration of, or damage to any computer, computer program, computer network or computer database, including but not limited to the infection of any of the foregoing through the transmission of a computer virus, malware, spyware or other fraudulent or unauthorized computer code that: (1) modifies, alters, damages, destroys, deletes, records or transmits information; (2) contaminates other computer programs or computer data; or (3) consumes computer resources or in some fashion usurps the normal operation of a computer system;

  (B) denial of service or delay, disruption, impairment or failure of any computer or communication network, service, hardware or software including but not limited to any **Claim** for lost profits or opportunities as a result of such denial of service, delay, disruption, impairment or failure;

  (C) unauthorized or unlawful access to, disclosure of, alteration of, theft, collection, storage, use or dissemination of, or loss of any confidential or proprietary business information or personally identifiable information as defined by: (1) applicable federal, state, local (or foreign equivalent) statutory law or common law anywhere in the world, or amendments thereto or rules or regulations promulgated thereunder; or (2) a **Company's** publicly stated privacy policy;

  (D) violation of any federal, state or local (or foreign equivalent) privacy or data security statutory law or common law anywhere in the world or amendments thereto or rules or regulations promulgated thereunder; or

  (E) violation of any law, ordinance, regulation or statute used to impose liability in connection with any unsolicited communication, distribution, publication, sending or transmission via telephone, cell or mobile phone, telephone facsimile machine, computer or other telephonic or electronic devices, including but not limited to the United States of America Telephone Consumer Protection Act of 1991, United States of America CAN-SPAM Act of 2003 and any amendments thereto or any rules or regulations promulgated thereunder, or any similar provisions of any federal, state, or local statutory law or common law anywhere in the world,

  provided that this Exclusion shall not apply to **Loss** on account of any securities **Claim**, **Shareholder Derivative Demand**, or shareholder derivative action.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

CHUBB

SEPARATE RETENTION FOR ESOP CLAIMS

Named Insured ENGEO Inc		Endorsement Number
Policy Number G48733396 002	Policy Period 09/01/2025 to 09/01/2026	Effective Date of Endorsement 09/01/2025
Issued By Westchester Surplus Lines Insurance Company		

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

EPIC PRIVATE COMPANY INSURANCE POLICY

It is agreed that the Policy is amended as follows:

1. Section II, Definitions, is amended to add the following:

   "**ESOP Claim**" means any **Claim** made against an **Insured** for a **Wrongful Act,** arising out of, attributable to, directly or indirectly resulting from, or in any way involving an employee stock ownership plan sponsored or established by the **Company**, or predecessor in interest of the **Company**, for the benefit of its **Employees**.

2. Section III, Exclusions, is amended to add the following:

   Solely regarding Insuring Agreement B, Employment Practices Liability, the Insurer shall not pay **Loss** on account of any **ESOP Claim**.

3. Solely regarding any **ESOP Claim**, Item 6, Coverage Elections, of the Declarations, Sections A, Management and Company Liability, and C, Fiduciary Liability, are amended to add the following:

   Retention each **ESOP Claim**: $50,000

   With respect to all other **Claims**, Retention Each Claim of the Declarations shall remain unchanged.

All other terms, conditions and limitations of this Policy shall remain unchanged.

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Authorized Representative

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BIOMETRIC INFORMATION PRIVACY CLAIM EXCLUSION

Named Insured ENGEO Inc		Endorsement Number
Policy Number G48733396 002	Policy Period 09/01/2025 to 09/01/2026	Effective Date of Endorsement 09/01/2025
Issued By (Name of Insurance Company) Westchester Surplus Lines Insurance Company		

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

EPIC PRIVATE COMPANY INSURANCE POLICY

It is agreed that the Policy is amended as follows:

1. Section III, Exclusions, subsection (a), is amended to add the following:

   The Insurer shall not be liable for **Loss** in connection with a **Biometric Information Privacy Claim**.

2. Section II, Definitions, is amended to add the following:

   "Biometric Information" means any:

   (1) biometric identifier including a retina or iris scan, fingerprint, voiceprint or scan of hand or face geometry; or

   (2) biometric information including any information, regardless of how it is captured, converted, stored or shared, based on an individual's biometric identifier used to identify an individual.

   "Biometric Information Privacy Claim" means any **Claim**, in whole or in part, alleging, based upon, arising out of, or attributable to any actual or alleged:

   (1) disclosure, collection, possession, usage, retention, storage, transmission, protection, dissemination, or destruction of **Biometric Information**;

   (2) consent to or release of the disclosure of **Biometric Information**;

   (3) sale, lease, capture, purchase or trade or any other types of profit from **Biometric Information**;

   (4) violation of any policies or practices involving **Biometric Information**; or

   (5) violation of any federal, state or local statutory law or common law anywhere in the world involving **Biometric Information**, or any amendments thereto or rules or regulations promulgated thereunder.

3. Section V, Employee Privacy Defense Costs Coverage Extension, the definition of **Record** is amended to add the following:

   Record does not include any **Biometric Information**.

4. Section V, Employee Privacy Defense Costs Coverage Extension, is amended to add the following at the end thereof:

No coverage shall be available under this Section V for **Loss** in connection with any **Biometric Information Privacy Claim**.

All other terms, conditions and limitations of this Policy shall remain unchanged.

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Authorized Representative

COMPANY INVESTIGATION COSTS ENDORSEMENT

Named Insured ENGEO Inc		Endorsement Number
Policy Number G48733396 002	Policy Period 09/01/2025 to 09/01/2026	Effective Date of Endorsement 09/01/2025
Issued By Westchester Surplus Lines Insurance Company		

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This Endorsement Modifies Insurance Provided Under the Following:

EPIC PRIVATE COMPANY INSURANCE POLICY

It is agreed that the Policy is amended as follows:

Section II. Definitions, is amended to add the following:

"Company Investigation Costs" means **Defense Costs** incurred by the **Company** under Insuring Agreement A:

(1) regarding any civil, criminal, administrative or regulatory investigation of the **Company** described in Section II, Definitions, Subsection (c)(5), **Claim**; or

(2) as described in the second paragraph of Section II, Definitions, Subsection (e), **Defense Costs**.

All other terms, conditions and limitations of this Policy shall remain unchanged.

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Authorized Representative

Amend Definition of Loss - HIPAA Penalties

Named Insured			Endorsement Number
ENGEO Inc			
Policy Symbol DON	Policy Number G48733396 002	Policy Period 09/01/2025 To 09/01/2026	Effective Date of Endorsement 09/01/2025
Issued By (Name of Insurance Company) Westchester Surplus Lines Insurance Company			

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

THIS ENDORSEMENT MODIFIES INSURANCE PROVIDED UNDER THE FOLLOWING:

It is agreed that Section II, Definitions, subsection (v), Loss, part (9), subsection (d) is deleted and replaced with the following:

civil penalties imposed for violation of the privacy provisions of the Health Insurance Portability and Accountability Act of 1996, provided that the Insurer's maximum aggregate liability for all such civil money penalties under this Policy shall be subject to a sublimit up to $1,500,000 but in no event greater than the Limit of Liability available applicable to Insuring Agreement C. This sublimit that shall be the maximum aggregate amount that the Insurer shall pay for all such penalties and shall be part of, and not in addition to, the Limit of Liability applicable to Insuring Agreement C;

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.

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Chubb Producer Compensation
Practices & Policies

Chubb believes that policyholders should have access to information about Chubb's practices and policies related to the payment of compensation to brokers and independent agents. You can obtain that information by accessing our website at http://www.chubbproducercompensation.com or by calling the following toll-free telephone number: 1-866-512-2862.

TRADE OR ECONOMIC SANCTIONS ENDORSEMENT

Named Insured ENGEO Inc			Endorsement Number
Policy Symbol DON	Policy Number G48733396 002	Policy Period 09/01/2025 **to** 09/01/2026	Effective Date of Endorsement 09/01/2025
Issued By (Name of Insurance Company) Westchester Surplus Lines Insurance Company			

Insert the policy number. The remainder of the information is to be completed only when this endorsement is issued subsequent to the preparation of the policy.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This insurance does not apply to the extent that trade or economic sanctions or other laws or regulations prohibit us from providing insurance, including but not limited to, the payment of claims. All other terms and conditions of policy remain unchanged.

Authorized Agent

Employers today face a dizzying array of employment laws, regulations and ongoing employment issues. Whether it involves employee discipline or termination, wage and hour, disability accommodation, or even the new frontier of social media, failure to comply with the ever-changing legal requirements can have a devastating impact on employee morale and the company's bottom line. Westchester recognizes the unique burdens faced by employers today and is pleased to announce that it has partnered with the nation's foremost employment and labor law firm, Littler Mendelson (Littler), to create a cutting-edge employment practices risk management tool for Westchester insureds, called EPL Assist™. Through EPL Assist™, insureds have an unlimited ability to seek out expert advice and counsel.

What is EPL Assist™?

EPL Assist™ is a cutting-edge risk management program providing policyholders with a wide variety of legal content, forms and analysis, combined with the ability to interface directly with Littler lawyers dedicated to assisting Westchester insureds in navigating what has become an employment law minefield. Through a secure web portal containing essential employment law resources and tools, as well as a toll-free hotline service, Westchester insureds with primary EPL coverage policies now have access to the content and advice necessary to compete in today's challenging legal environment.

Insureds are provided:

- No cost, online and live access to the legal experts at Littler, the largest employment and labor firm in the U.S.
- Employment law updates, newsletters and related publications
- A compendium of online employment law resources through a secure website, including unlimited access to such content as:
  - Employment policies and practices
  - Human Resources forms library
  - Sample employee handbooks, including supplement information for all 50 states
  - State and national employment law summaries and reference materials
  - 50 state surveys on various employment law essentials, including such things as minimum wage and overtime requirements, protected classifications, new hire reporting requirements, meal and rest break requirements, and voting rights requirements
- Complimentary registration to Littler's nationwide breakfast briefing series
- Complimentary access to Littler's webinars and podcasts
- Discounted rates for various Littler events

How do I access EPL Assist™?

Policyholders can simply visit www.EPLAssist.com to register or take a tour. Should you have a question on an employment situation please visit www.EPLAssist.com.

U.S. TREASURY DEPARTMENT'S OFFICE OF FOREIGN ASSETS CONTROL ("OFAC") ADVISORY NOTICE TO POLICYHOLDERS

No coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC. **Please read this Notice carefully.**

The Office of Foreign Assets Control (OFAC) administers and enforces sanctions policy, based on Presidential declarations of "national emergency". OFAC has identified and listed numerous:

- Foreign agents;
- Front organizations;
- Terrorists;
- Terrorist organizations; and
- Narcotics traffickers;

as "Specially Designated Nationals and Blocked Persons". This list can be located on the United States Treasury's web site – http//www.treas.gov/ofac.

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.

SERVICE OF SUIT ENDORSEMENT

Named Insured ENGEO Inc			Endorsement Number
Policy Symbol DON	Policy Number G48733396 002	Policy Period 09/01/2025 to 09/01/2026	Effective Date of Endorsement 09/01/2025
Issued By (Name of Insurance Company) Westchester Surplus Lines Insurance Company			

Insert the policy number. The remainder of the information is to be completed only when this endorsement is issued subsequent to the preparation of the policy.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

Information about service of suits upon the company is given below. Service of process of suits against the company may be made upon the following person, or another person the company may designate:

Natalie D'Amora, Esq., Managing Counsel
Chubb
436 Walnut Street
Philadelphia, PA 19106-3703

The person named above is authorized and directed to accept service of process on the company's behalf in any action, suit or proceeding instituted against the company. If the insured requests, the company will give the insured a written promise that a general appearance will be entered on the company's behalf if a suit is brought.

If the insured requests, the company will submit to the jurisdiction of any court of competent jurisdiction. The company will accept the final decision of that court or any Appellate Court in the event of an appeal. However, nothing in this endorsement constitutes a waiver of the company’s right to: remove an action to a United States District Court, seek a transfer of a case to another court, or to enforce policy provisions governing choice of law or venue selection, as may be permitted by the laws of the United States, or of any state in the United States.

The law of some jurisdictions of the United States of America requires that the Superintendent, Commissioner or Director of Insurance (or their successor in office) be designated as the company's agent for service of process. In these jurisdictions, the company designates the Director of Insurance as the company's true and lawful attorney upon whom service of process on the company's behalf may be made. The company also authorizes the Director of Insurance to mail process received on the company's behalf to the company person named above.

If the insured is a resident of Canada, the insured may also serve suit upon the company by serving the government official designated by the law of the insured's province.

NOTHING HEREIN CONTAINED SHALL BE HELD TO VARY, ALTER, WAIVE OR EXTEND ANY OF THE TERMS, CONDITIONS, OR LIMITATIONS OF THE POLICY TO WHICH THIS ENDORSEMENT IS ATTACHED OTHER THAN AS ABOVE STATED.

Authorized Representative

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

Named Insured ENGEO Inc			Endorsement Number
Policy Symbol DON	Policy Number G48733396 002	Policy Period 09/01/2025 to 09/01/2026	Effective Date of Endorsement 09/01/2025
Issued By (Name of Insurance Company) Westchester Surplus Lines Insurance Company			

Cap On Losses From Certified Acts Of Terrorism

Notwithstanding anything in this Policy to the contrary, if aggregate insured losses attributable to terrorist acts certified under the federal Terrorism Risk Insurance Act exceed $100 billion in a Program Year (January 1 through December 31) and the Insurer has met its deductible under the Terrorism Risk Insurance Act, the Insurer shall not be liable for the payment of any portion of the amount of such losses that exceeds $100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

"Certified act of terrorism" means an act that is certified by the Secretary of the Treasury, in concurrence with the Attorney General of the United States and in consultation with the Secretary of Homeland Security, to be an act of terrorism pursuant to the federal Terrorism Risk Insurance Act. The criteria contained in the Terrorism Risk Insurance Act for a "certified act of terrorism" include the following:

1. The act resulted in insured losses in excess of $5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and

2. The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

All other terms and conditions of this Policy remain unchanged.

Authorized Representative

CHUBB

ENGEO Inc

Policyholder

POLICYHOLDER DISCLOSURE
NOTICE OF TERRORISM
INSURANCE COVERAGE

Coverage for acts of terrorism is included in your policy. You are hereby notified that under the Terrorism Risk Insurance Act, as amended, the definition of act of terrorism has changed. As defined in Section 102(1) of the Act: The term “act of terrorism” means any act or acts that are certified by the Secretary of the Treasury---in consultation with the Secretary of Homeland Security, and the Attorney General of the United States---to be an act of terrorism; to be a violent act or an act that is dangerous to human life, property, or infrastructure; to have resulted in damage within the United States, or outside the United States in the case of certain air carriers or vessels or the premises of a United States mission; and to have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion. Under your coverage, any losses resulting from certified acts of terrorism may be partially reimbursed by the United States Government under a formula established by the Terrorism Risk Insurance Act, as amended. However, your policy may contain other exclusions which might affect your coverage, such as an exclusion for nuclear events. Under the formula, the United States Government generally reimburses 80% of covered terrorism losses exceeding the statutorily established deductible paid by the insurance company providing the coverage. The Terrorism Risk Insurance Act, as amended, contains a $100 billion cap that limits U.S. Government reimbursement as well as insurers’ liability for losses resulting from certified acts of terrorism when the amount of such losses exceeds $100 billion in any one calendar year. If the aggregate insured losses for all insurers exceed $100 billion, your coverage may be reduced.

The portion of your term premium that is attributable to coverage for acts of terrorism is $0, and does not include any charges for the portion of losses covered by the United States government under the Act.